

LEARNER GUIDE

Unit Standard Title	Give evidence in court
Unit Standard No.	244182
Unit Standard Credits	4
NQF Level	3



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This material has been compiled based on the **UNIT STANDARD 244182: GIVE EVIDENCE IN COURT**

The program has been accredited by SASSETA in the Republic of South Africa.

Material compiled by:

Training Dynamics Africa

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1. Introduction

This learning program is part of a complete qualification. For more details concerning the complete qualification please contact your service provider or alternatively the office of the SASSETA

2. Purpose of this learning program

This unit standard will lead learners towards achieving knowledge, skills and attitudes that would enable them to prepare for, attend, and give evidence in a court of law. Learners will be able to understand court structures, functions and procedures and will also be able to describe the functions, roles and responsibilities of court personnel. This unit standard will enable learners to demonstrate an elementary understanding of law of evidence. This competency relates to the learners ability to differentiate between factual and circumstantial evidence that will enable them to review their presentations in court.

A person credited with this unit standard will be able to:

- Prepare to give evidence in court.
- Give evidence in court of law in a given scenario.
- Debrief the organization on the presentation of evidence in the court of law in a way that will contribute towards future improvement.

2.1 Target group

This program is compiled for the following **target group**:

- Security members
- South African Defense Force members
- South African Police Force members
- Correctional Services
- Individuals who wishes to complete the NQF level 3 National Certificate in security practices.

3. Standards and qualifications

It is important that you as the learner understand and realize that this training program is not presented in isolation, but that it was developed based upon nationally recognized standards known as unit standards.

REMEMBER.....

Unit standards are the “building blocks” of qualifications. All qualifications are plotted on the National Qualifications Framework (NQF).

Unit standards comprises of outcomes. An outcome is a statement that describes the required competency that must be demonstrated by the learner on successful completion of a training intervention.

4. Assessments

In order to assess whether a learner can actually demonstrate the desired outcomes, assessment criteria are included in the unit standard. Each outcome has its own set of assessment criteria.

REMEMBER.....

The assessment criteria describe the evidence that is needed that will show that the learner has demonstrated the outcome correctly.

Kindly refer to the unit standard attached hereto for the assessment criteria.

It is of utmost importance that the learner fully understands the assessment criteria as listed in the unit standard, as it is the only way in which the learner will know what he will be assessed against.

The **final or summative assessment** is the most important aspect of this training program. It is during this process that the learner will be declared competent or not yet competent.

The learner will know exactly how he will be assessed, and when and where he will be assessed. All of these details must be obtained from the training provider where the learner enrolled for his program.

5. Range statements

REMEMBER.....

Also included in the unit standard are the range statements in support of the assessment criteria.

The range statements indicate detailed requirements of the assessment criteria.

6. The learning guide

The learner guide is included in this material under various learning units. The learner guide has been designed in such a manner that the learner is guided in a logical way through the learning material and requirements of the unit standard.

On completion of this skill program, the learner will be assessed against the assessment criteria as stipulated in the unit standard.

Each of the modules consists of learner outcomes to be achieved during training and development interventions, work related experience or at your own time. The learner outcomes will enable you to achieve the required level of confidence and competence in order to undergo the summative (final evaluations) assessment.

The learner needs to assess his own knowledge and skill throughout the training process by completing the learner workbook. With the completion of the workbook you start collecting evidence to proof your competence. The learner workbook will be assessed (FORMATIVE ASSESSMENT)

TAKE NOTE

The learner guide will remain the property of the learner once the LEARNING PROGRAM has been completed.

TAKE NOTE

- The best results will be obtained if you start with Study Unit 1 in the Learner Guide, and work your way through it, study unit by study unit.
- All learning outcomes are vital and must be studied (and exercised for all practical requirements) thoroughly to ensure that enough evidence for all specific outcomes is generated.

7. Learning assumed to be in place

It is assumed that a learner which registers for this program have completed a program in communication at NQF Level 3 or equivalent.

It is imperative to understand that this program are only one of the building blocks to complete Skills program 1. The complete list of unit standards for Skills program appears on the next page.

7.1 Security program matrix

SKILLS PROGRAM 1: SASSETA E			
244177	Conduct a security patrol in area of responsibility	Level 3	7 Credits
244184	Apply legal aspects in a security environment	Level 3	8 Credits
244176	Use security equipment	Level 2	2 Credits
244179	Handle complaints and problems	Level 3	6 Credits
244181	Perform hand over and take over responsibilities	Level 3	2 Credits
244182	Give evidence in court	Level 3	4 Credits
12484	Perform basic fire fighting	Level 2	4 Credits
116534	Carry out basic first aid treatment in the work-place	Level 3	2 Credits

Patrol Security officer/Grade E

SKILLS PROGRAM 2: SASSETA D			
244189	Conduct access and egress control	Level 4	7 Credits
242825	Conduct evacuations and emergency drills	Level 4	4 Credits
11505	Identify, handle and defuse security related conflict	Level 4	12 Credits
117705	Demonstrate knowledge of the Firearms Control Act 2000 (Act No. 60 of 2000)	Level 3	3 Credits
113924	Apply basic business ethics in a work environment	Level 2	2 Credits
119465	Write/present/sign texts for a range of communicative contexts	Level 3	5 Credits
114979	Operate a computer workstation in a business environment	Level 3	2 Credits

Access control officer/Grade D

SKILLS PROGRAM 3: SASSETA C			
113909	Coach a team member in order to enhance individual performance in work environment	Level 3	5 Credits
13912	Apply knowledge of self and team in order to develop a plan to enhance team performance	Level 3	5 Credits
244578	Describe how to manage reactions arising from a traumatic event	Level 3	2 Credits
113852	Apply occupational health, safety and environmental principles	Level 3	10 Credits
13936	Outline the legal environment of a selected industry	Level 3	2 Credits
119472	Accommodate audience and context needs in oral/signed communication	Level 3	5 Credits
11508	Write security reports and take statements	Level 4	10 Credits

Asset & reaction officer/Grade C

8. Preparation of summative assessment

After you have worked through the **LEARNER GUIDE** and you are satisfied that all theoretical and practical requirements/ evidence, as stipulated by the UNIT STANDARD, can be met, you need to make your own necessary arrangements with the assessor and/or facilitator. The training establishment will then arrange a suitable date for you to attend your pre-assessment meeting and then arrange for a suitable date to complete the final assessment.

8.1 RPL assessment



The assessment of RPL learners will be conducted in the same way as for those of new learners. The assessment pack is exactly the same and will therefore be used for new learners as well as RPL Learners. It must however be noted that learners who are applying for RPL must provide proof of previous learning and subject related experience prior to the assessment.

This proof or evidence can be in the format of certified copies (certificates) of previous learning programs that have been attended.

All the evidence will be assessed and authenticated before a learner will be allowed to enroll for an RPL program.

9. Roles and responsibilities

9.1 Facilitator/instructor

- Prepare to facilitate.
- Transfer of knowledge and skills

9.2 The role of the assessor

- Plan for the assessment
- Prepare the learner for the assessment

9.3 The role of the Learner

- Prepare for assessment.
- Accept the responsibility of learning.
- Accept the responsibility to produce/deliver evidence.

STUDY UNIT 1

Courts of Law in South Africa

LEARNING OUTCOMES

On completion of this study unit the student will....



- ♦ Demonstrate awareness of the South African criminal justice system.
- ♦ Explain the roles and functions of the different courts within the South African Criminal Justice System.
- ♦ Explain the roles of all the participants in a court.

1. Introduction

Constitutional law (the first branch of public law) specifically deals with state authority and that the three main bodies of the state are:

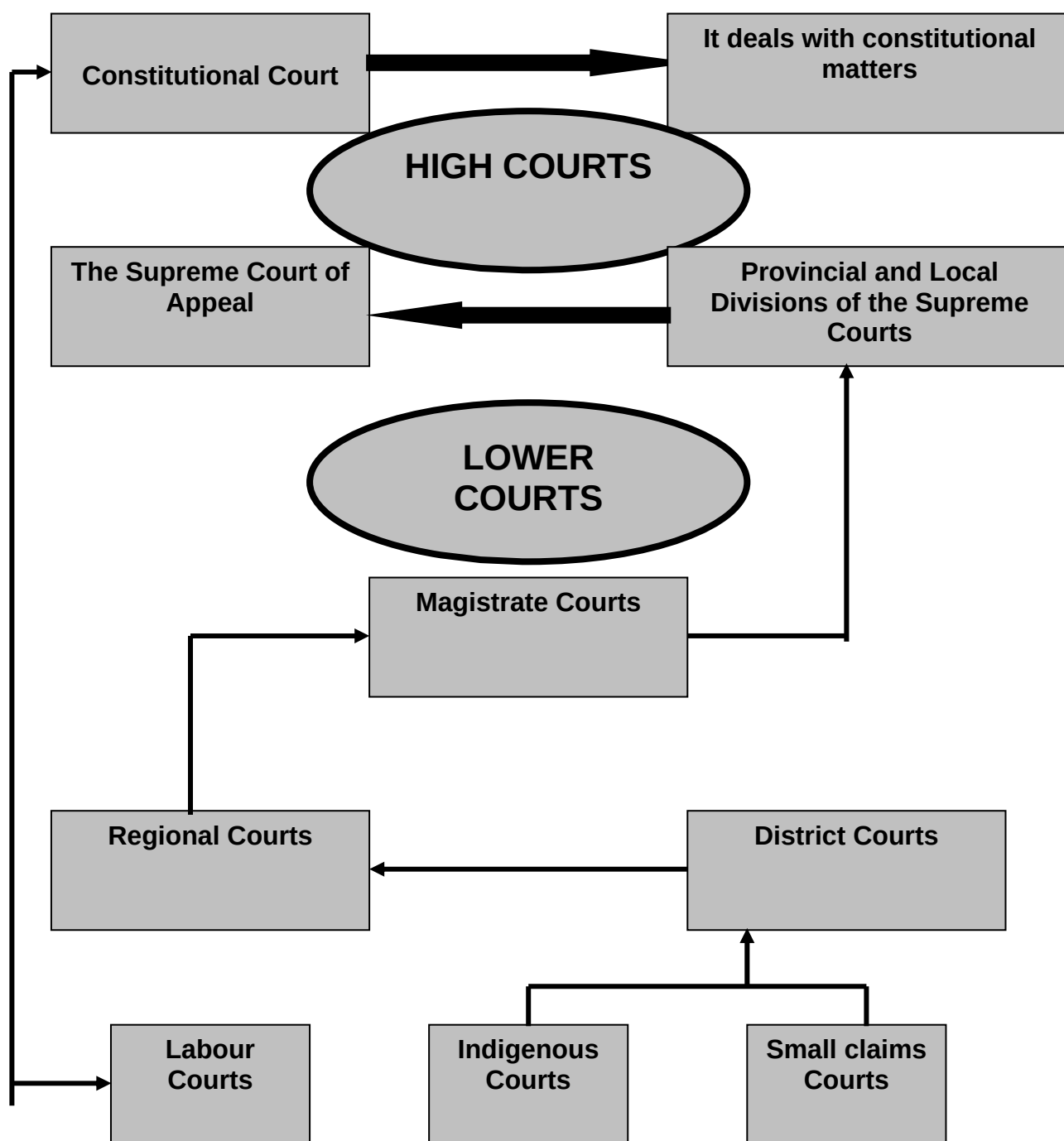


- **The legislature**
- **The judiciary**
- **The executive.**

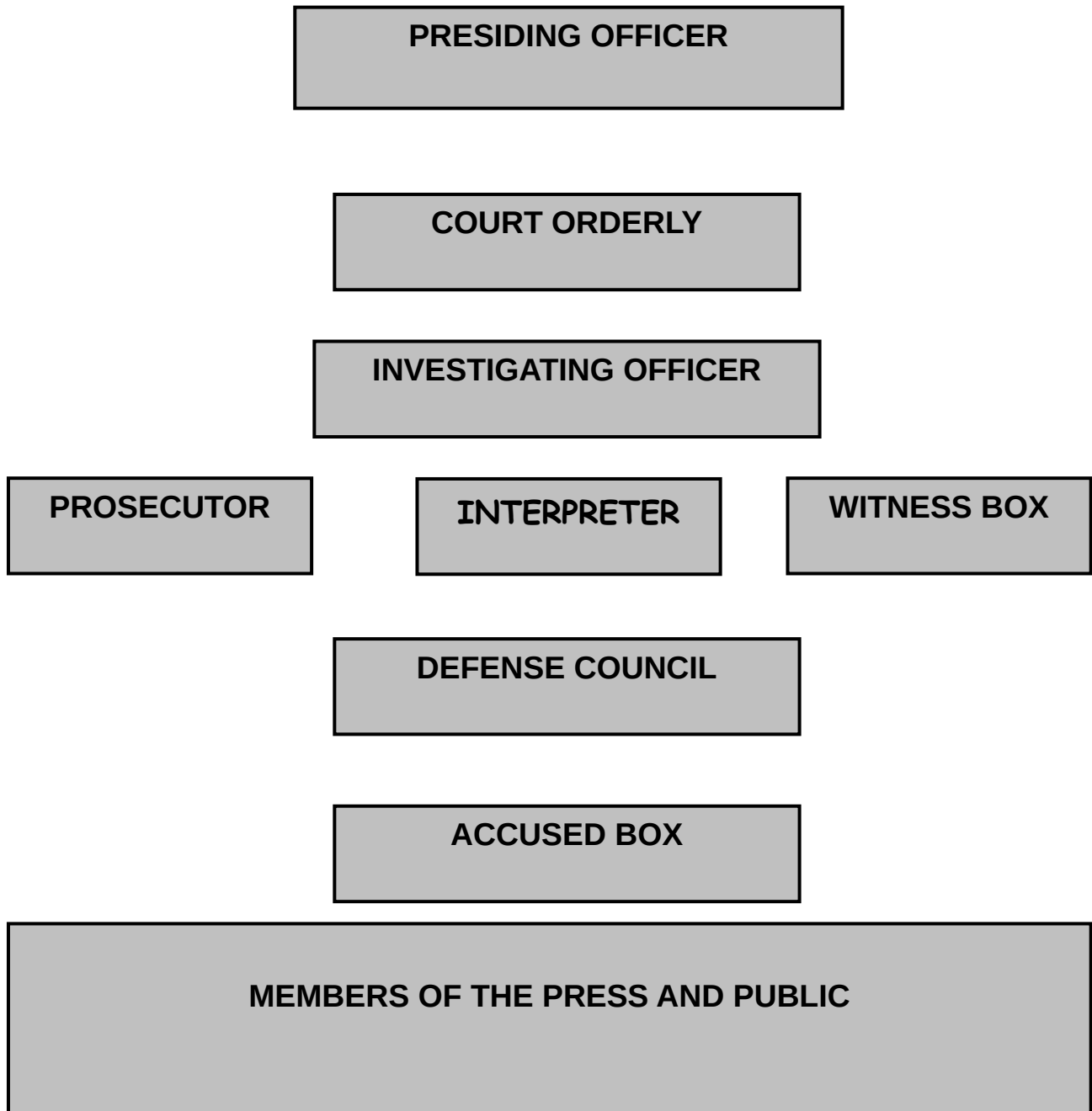
In this study unit you will learn more about the judiciary (otherwise known as the courts). This is necessary for a general understanding of South African law, since it is essential to know where a specific legal matter should be handled. In this regard we talk about jurisdiction (**the competence of a particular court to hear a specific case**). Although going to a court is the primary way of solving legal disputes, you will also learn more about solving legal disputes without going to court. In this regard, alternative dispute resolution is discussed.

2. Basic Court Structure in South Africa

There are basically two kinds of courts in South Africa that have jurisdiction to hear legal matters, namely lower courts and higher courts. The following diagram sets out the basic court structure in South Africa:



2.1 Typical layout of a court



When dealing with jurisdiction it is necessary to understand the difference between a few concepts, the first being the difference between appeal and review.

An appeal is lodged from one court to another and takes place when the court from where the appeal is lodged, has allegedly made an error in its judgment.

A review also takes place from one court to another, but in the case where there has been an alleged irregularity in the proceedings.

TAKE NOTE

Certain cases are automatically reviewed by another court. Second, the court in which the case begins for the first time is called the court of first instance.

REMEMBER

Geographical area and the type of case will determine the court where a case starts, where an appeal is heard and where a case is reviewed.

3. Jurisdiction of the Different Courts in South Africa

3.1 Lower courts

Lower courts consist of district courts and regional courts and are presided over by a magistrate, except for some special lower courts. They function as a court of first instance, but sometimes hear appeals from the courts of chief and headmen.

REMEMBER

A district court has jurisdiction within a specific magisterial district and a regional court within a specific region. A region normally consists of several magisterial districts. A lower court may not decide the constitutionality of any legislation, but may decide on constitutional matters if an act parliament gives it such power.

3.2 District courts

TAKE NOTE

District courts cannot try murder, rape and high treason cases. With regard to other criminal cases, it may not impose a sentence of imprisonment for more than 3 years or a fine of more than R60 000.

A district court may only try a civil matter if the amount of the claim is less than R100 000. However, the parties in a civil matter may consent in writing to an increased jurisdiction of the court. Note that a district court cannot try matters regarding the status of a person, such as an application to declare someone presumed dead.

3.3 Regional courts

TAKE NOTE

These courts may try any offence except high treason.

With regard to other criminal cases, it may not impose a sentence of imprisonment for more than 15 years or a fine of more than r300 000. Civil cases are normally not heard in regional courts.

3.4 Special lower courts

These courts have been instituted to handle specialized matters such as issues involving children, maintenance, speedy and inexpensive litigation in civil cases, and traditional customary law.

4. Higher courts

4.1 High courts

TAKE NOTE

All higher courts are presided over by a judge or judges.

High courts consist of provincial and local divisions. A particular high court has jurisdiction within a provincial area. In some instances, a provincial division and a local division of the high court has concurrent jurisdiction within a provincial area.

As a court of first instance, a high court has jurisdiction to try any criminal offence and any civil case if the amount of the claim is more than R100 000 and if the claim is a claim for specific performance without damages in the alternative.

The high court is also the only court that hears matters regarding the status of a person. A high court may decide any constitutional matter that does not fall within the exclusive jurisdiction of the constitutional court. It can also declare a particular piece of legislation unconstitutional, but such an order will only come into force after having been confirmed by the constitutional court.

High courts have review and appeal jurisdiction of both criminal and civil cases from the lower courts. It is also possible to appeal to a full bench (three judges) of the high court against a decision of a single judge of the same court.

4.2 Special high courts

These courts have been instituted to handle specialized matters such as labour disputes, disputes concerning the use of public water, appeals concerning income tax issues, certain commercial cases, land claims, and disputes over patent rights.

4.3 The constitutional court

TAKE NOTE

The constitutional court only handles constitutional and related matters and has jurisdiction within the whole of South Africa.

The constitutional court functions as a court of first instance in matters where it has exclusive jurisdiction. These matters are:

- Disputes between organs of state at national or provincial level.
- The constitutionality of parliamentary or provincial bills.

- The constitutionality of a parliamentary or provincial act, when member of the national assembly or a provincial legislature have called upon the constitutional court for an order declaring such an act unconstitutional.
- The constitutionality of an amendment to the Constitution.
- A question of whether parliament or the president has failed to fulfill a constitution duty.
- The certification of a provincial constitution.

REMEMBER.....

It is also the highest court with regard to constitutional matters. This means that any appeals against constitutional judgments of the high court or the supreme court of appeal are heard by the constitutional court.

The constitutional court therefore acts as a court of appeal in such matters, and any judgment of such a court that declares legislation to be unconstitutional must be confirmed by the constitutional court.

4.4 Supreme Court of appeal

REMEMBER

The supreme court of appeal is only a court of appeal and never functions as a court of first instance.

It hears appeals from all the high courts in any sentence and makes any order. It is the highest appeal court in all matters except constitutional matters. It can therefore hear appeals regarding constitutional matters, but only matters that are not within the exclusive jurisdiction of the constitutional court. Should the supreme court of appeal declare certain legislation to be unconstitutional, such a decision must be referred to the constitutional court for confirmation.

5. The People who make our Courts Function

Certain people are directly involved with a case in court. These people are:

- The presiding officer
- The legal representative involved in a case.

Although other people are only indirectly involved with a case, they play an essential role in the proper administration of justice.

5.1 The presiding officer

The presiding officer is the person who hears and decides a case. As was pointed out earlier, judges are the presiding officers in the higher courts. They are appointed for life, paid by the Department for justice and Constitutional Development, and may come from any sector of the legal profession. Judges are normally addressed as "Your Lordship" or "Your Honour." Magistrates normally preside over lower courts and are addressed as "Your worship."

5.2 Advocates, attorneys and prosecutors

These people are legal practitioners who handle cases on behalf of their clients and the state. Due to historical reasons, the professions of advocates and attorneys are divided.

Prosecutors handle matters only on behalf of the state and act on behalf of a specific director of public prosecutions.

IMPORTANT

In the higher courts, prosecutors are called "state advocates"

IMPORTANT

In the lower courts they are known as "public prosecutors."

IMPORTANT

Attorneys who act on behalf of the state are called "state attorneys." They handle civil matters on behalf of the state.

Before someone may appear as an advocate or an attorney, such a person must first be admitted as an attorney or an advocate by the high court. Attorneys have to be members of the law society in whose area they work. Advocates do not have to belong to any society, although most of them belong to one of the bar councils.

Traditionally, only advocates could appear in the higher courts. However, today an attorney can apply to be granted a right of appearance. Such a right will be granted if such a person has a LLB degree or has obtained a B Proc degree and has three years experience as an attorney.

Such a person can be called an "attorney-advocate." Currently, the standard legal qualification for all legal practitioners is a LLB degree. Advocates must wear a black advocate's gown when they appear in the higher courts, but need not wear such a gown when appearing in the lower courts. Attorneys must, however, wear a traditional black gown when appearing in the lower courts.

Attorneys can be described as the general practitioners of the legal profession. Clients approach them with a variety of legal matters such as the conducting of criminal cases in lower courts, the drawing up of wills and the transfer of property. An attorney can be described as a legal administrator. He/she may practice alone or with other attorneys.

Advocates can be described as specialist litigators who argue a client's case in court. This is mostly done in the high court. A client must first approach an attorney who will, if necessary, refer a case to an advocate. An advocate works for him/herself and may not practice with other advocates.

5.3 Registrar of the high court

This official is responsible for the administration of justice in the high court. He/she receives fines, finalizes dates for court cases and issues summonses for people to appear in court. In the lower courts, this official is known as the clerk of the court.

5.4 Registrar of deeds

The registrar of deeds is responsible for the registration of various rights with regard to immovable property. He/she operates from the deeds office.

5.5 Other registrars

Other registrars who are indirectly involved with the administration of justice include the registrar of companies.

5.6 Director of public prosecutions

This official has the power to institute criminal proceedings on behalf of the state. There are various directors of public prosecutions who act on behalf of a national director of public prosecutions.

5.9 Master of the high court

The master of the high court is an important official who is responsible for a number of tasks, which include the administration of deceased and insolvent estates, the handling of the liquidation of companies, and the control of trust funds on behalf of minors.

5.8 Sheriff

This official is responsible for the serving of summonses, judgments, and other orders for both lower courts and higher courts.

5.9 Family advocate

The family advocate takes care of the interests and welfare of children in divorce matters.

5.10 Public protector

The public protector investigates allegations of improper behavior at any level of government.

5.11 Public defender

The public defender is made up of attorneys and advocates who work for the state. They appear on behalf of accused persons in criminal trials that cannot afford legal assistance.

5.12 Legal advisor

Legal advisors are normally people who are in the permanent employment of either the state or a private institution. The law plays an important role in everyday life and private legal advisors are there to ensure that private institutions such as companies comply with the law. State legal advisors give legal advice to state departments with regard to existing and new legislation.

6. Obtaining Legal Representation**6.1 General**

In the previous section, the important role played by the attorneys and advocates was stressed. The normal way of obtaining legal advice would be to consult an attorney. The law society for a specific region can be contracted to obtain the name of an attorney in your area. He/she will consider your case and, if necessary, refer it to an advocate. However, it is well known that these people are quite expensive. Luckily there are some ways of assisting people who do not have the resources to pay for legal representation.

The most important of these ways is by means of legal aid given by the state in terms of the Legal Aid Act. This type of legal aid is given to people who do not earn enough to afford legal costs. However, there are certain requirements that must be met before someone will qualify for legal aid, and for some criminal and civil cases legal aid is not given. There are also other bodies that provide legal aid at a nominal cost, such as legal aid clinics situated at most universities and pro bono advocates who are appointed who are appointed in serious criminal cases that are heard in the high court.

6.2 The constitutional right to legal representation

Although the Constitution states that an accused person has the right to legal representation and that an accused must be afforded legal representation at State expense if substantial injustice would otherwise result, this is not always possible. A strict application of this right will place too great a strain on the legal profession and the state budget. Nevertheless, the court must always do everything in its power to ensure that an accused person obtain legal representation, especially where the accused is uneducated and the case is of a complex nature.

[illegible]

STUDY UNIT 2

THE WITNESS

LEARNING OUTCOMES

On completion of this study unit the student will....



- ♦ Describe the different ways of ensuring the attendance of a witness in court.
- ♦ Use the correct terminology when addressing various role-players in a court.
- ♦ Explain the Officer's duties as a witness prior to commencement of a court case.
- ♦ Present and conduct him in a professional manner in court.
- ♦ Conduct him in accordance with accepted best practice and court protocol in a variety of circumstances.

1. Ensuring attendance of a witness in a court

The following methods can be used in order to make sure the witness attends the court case:

- Witnesses either receives a Subpoena or
- Are verbally warned to attend court on a given date and time or
- A written notice or are summons.



- It is wise, on arrival at court, to report to the prosecutor and advise him of your presence in case either party wishes to discuss any aspects of the case.
- Officers must be properly dressed when attending court, uniform or a suit or jacket and long trousers, collar and tie.
- Witnesses are required to take the Oath or make a Solemn Declaration to tell the truth before giving evidence.
- The witnesses may not sit in court whilst the case that they will testify in is being heard until such time as they have given evidence.

**SUBPOENA IN TERMS OF SECTION 9(2) OF THE MAINTENANCE ACT, 1998
(ACT No. 99 OF 1998)**

(A document in the form set out in Form J 214 must accompany the subpoena to the person against whom a maintenance order may be/was made)

Reference No.

Maintenance Court (Magistrate's Court)	Court/ Room No.	Date of enquiry							
		d	d	m	m	y	y	y	y

A. Subpoena

1. To any person authorised to serve process:

You are hereby directed to —

(a) subpoena the following persons —

Name of person in whose favour maintenance order is to be/
was made:

Name of person against whom maintenance order may be/was
made:

ID. No./Date of birth

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

ID. No./Date of birth

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

Address:

Address:

No. of rail warrant

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

No. of rail warrant

--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--	--

- (i) to appear in person before the above-mentioned court at 9:00 on the date stated above; and
- (ii) to remain present until excused by the court, to give evidence at an enquiry, in terms of section 10 of the Maintenance Act, 1998 (Act No. 99 of 1998), instituted by the maintenance officer;
- (b) serve on each of the above-mentioned persons a copy of this subpoena and report to this Court what you have done with regard to it; and
- (c) request the above-mentioned persons to produce the following at the enquiry:
 - (i) Part B of this Form, duly completed by (the opposing party), together with supporting documentation, where possible.
 - (ii)
 - (iii)

2. To the persons who are hereby summoned:

(a) Warnings:

- (i) If your above-mentioned address changes before the proceedings are finalised or before you are officially advised that you are no longer required as a witness you must inform the maintenance officer of the above-mentioned court thereof.
- (ii) If you fail to comply with the above-mentioned warning and this subpoena you may be arrested and on conviction sentenced to a fine or a term of imprisonment.
- (b) An application has been made for —
 - *(i) the *making of the following maintenance order/substitution of the existing maintenance order for the following order:
 - *(aa) A *weekly/monthly payment of —
 - R in respect of the complainant, and/or

EXAMPLE:

Amount		Name of child
R	in respect of	
R	in respect of	
R	in respect of	
R	in respect of	
R	in respect of	

and/or

*(bb) [other contributions, for example, medical and dental costs, school fees, fees to tertiary institutions, school wear, expenses for sport and/or cultural activities, birth expenses and maintenance for child(ren) from birth]

.....

.....

.....

*(ii) the discharge of the existing maintenance order.

3. To the person against whom a maintenance order may be made/was made:

Your attention is drawn to —

- (a) section 17(1) of the Maintenance Act, 1998 (Act No. 99 of 1998), in terms of which you may consent in writing (on the attached document) to the making, in your absence, of an order against you for the payment of maintenance; and
- (b) section 18(1) of the Maintenance Act, 1998 (Act No. 99 of 1998), in terms of which an order by default may be issued against you if the maintenance court is satisfied that you have knowledge of this subpoena and still failed to appear before the maintenance court.

Dated at this day of year

.....
Maintenance officer/Clerk of the Maintenance Court

B. Particulars regarding assets, income and expenditure of opposing party:

4. Particulars of my assets and *monthly/weekly income and expenditure (supported by documentary proof, where possible) are as follows:

Assets		Income		
Fixed property	R	Gross salary		R
Investments	R	Minus: Deductions:	Tax	R
			Medical Aid	R
Savings	R		Pension	R
			Other:	R
Shares	R			R
				R
Motor vehicles	R	Total nett salary		R
Other:	R	Other income (state source of income)		R
	R			R
	R			R
		Total income		R

	Expenditure		Self	Child(ren)	Total	
1	Lodging (bond repayment/levy/rent/board)					
2	Groceries/food/personal care (including hair care/cosmetics etc.)					
3	Household expenditure	Water and electricity/gas/paraffin				
		Rates and Taxes				
		Laundry/dry cleaning				
		Lunches				
		Telephone				
		Domestic worker				
		Garden services				
		Insurance (short term)				
4	Clothing	Clothes and shoes				
		School uniforms				
		Sports clothes				
5	Transport	Bus/taxi/lift club				
		Car	Installments and insurance			
			Maintenance			
			Fuel			
			Licences			
			Parking			
6	Educational expenditure	School fees				
		Crèche/day care/after school care				
		Insurance (study policy)				
		Books/stationery				
		Outings/extramural				
		Sports				
		Other school expenditure				
7	Medical expenditure	Doctor/dentist/etc.				
		Medication				
		Hospital				
		Other medical expenditure				
8	Insurance	Life				
		Annuity				
		House owners/house holders				
9	Pocket money/allowances					
10	Holidays, entertainment and recreation (including M-Net)					
11	Maintenance, replacement and repairs of items	House				
		Household appliances				
		Kitchenware				
		Linen, towels etc.				
		*Bicycles/bikes/scooters				
		Other items				
12	Personal loans					

13	Security alarm system				
14	Membership fees				
15	Religious contributions/charities				
16	Gifts				
17	TV licence				
18	Reading material	Books/newspapers/periodicals			
19	Lease/credit agreement payments	Furniture			
		Appliances			
		Other			
20	Pets	Food			
		Veterinary surgeon			
		Licence			
21	Other (not specified above)				
		Total expenditure			

* Delete whichever is not applicable.

C. Return of service (FOR OFFICIAL USE ONLY)

I,, certify that I have —

*(a) delivered a copy of the subpoena personally
[regulation 26(1)(a)(i)];

or

*(b) offered a copy of the subpoena for delivery to personally
[regulation 26(1)(a)(i)];

or

*(c) delivered a copy of the subpoena to a person apparently
not younger than the age of 16 years and apparently residing or employed at the *residence/place of employment/place
of since he/she could not conveniently be found [regulation 26(1)(a)(ii) or (iii)];

or

*(c) *affixed/placed a copy of the subpoena to/in the *outer/principal door/security gate/post box of the *residence/place of
employment/place of business of
since he/she prevented the service by keeping his/her *residence/place of employment/place of business closed [regulation
26(1)(c)].

Dated at this day of year

.....
*Maintenance investigator/Sheriff/Police Officer

ORIGINAL: To be returned to the Clerk of the Court/OORSPRONKLIKE: Moet aan die Klerk van die Hof terugbesorg word

Case No./Saak No. /

SUMMONS IN CRIMINAL CASE • DAGVAARDING IN STRAFSAAK

Magistrate's Court

Landdroshof

District Distrik		Regional division Streekafdeling	
Held at Gehou te	Court Hof	Date of trial Verhoordatum	

To any **POLICE OFFICER** or **OTHER PERSON** empowered to serve a summons in criminal proceedings:

You are hereby commanded in the name of the State to serve the copy of this summons on the person(s) (hereinafter referred to as accused) of whom particulars appear hereunder as to summons him/her/them to appear in court and to remain in attendance in connection with the charge(s) of which the particulars is/are mentioned hereunder. Report to this Court what you have done thereon.

Aan enige **POLISIEBEAMPTTE** of **ANDER PERSOON** gemagtig om 'n dagvaarding in strafregtelike verrigtinge te beteken:

U word hierby in die naam van die Staat gelas om die afskrif van hierdie dagvaarding aan die persoon/persone (hieronder die beskuldigde(s) genoem) van wie besonderhede hieronder verskyn, te beteken ten einde hom/haar/hulle aan te sê om die hofverrigtinge by te woon en aanwesig te bly insake die aanklag(te) waarvan die besonderhede hieronder verskyn. U moet aan hierdie Hof verslag doen van wat u hieromtrent gedoen het.

Name Naam				
Address Adres				
Gender Geslag	Occupation Beroep	Age Ouderdom	Id No. Id No.	

Particulars of charge(s): Besonderhede van aanklag(te):

Accused is/are guilty of the offence of Beskuldigde(s) is skuldig aan die misdryf van
in that upon or about the day of in the year deurdat op of omtrent die dag van in die jaar and at or near en te of naby the accused did wrongfully die beskuldigde(s) wedderregtelik

.....
Date stamp of issuing office
Datumstempel van kantoor van uitvoering

EXAMPLE:

* Delete whichever is not applicable.

J 175 (81/810713)

FOR OFFICIAL PURPOSES ONLY

I, the undersigned, certify that I have served this summons upon the within-named person by—

or	*(a) delivering a true copy to him/her PERSONALLY;
	*(b) delivery as he/she could not be found, a true copy to a person apparently over the age of 16 years and apparently residing or employed at the witness's place of *RESIDENCE/ EMPLOYMENT/BUSINESS;

at.....
.....

The nature and exigency of this summons was explained to the recipient thereof.

Time..... Day..... Month..... Year.....

Place *Signature of empowered officer*

..... *Signature of recipient* *Full name*

..... *Full name* *Capacity*

* Skrap wat nie van toepassing is nie.

SLEGS VIR AMPTELIKE GEBRUIK

Ek, die ondergetekende, sertifiseer dat ek hierdie dagvaarding aan genoemde persoon beteken het deur—

of	*(a) 'n ware afskrif aan hom/haar PERSOONLIK te oorhandig;
	*(b) aangesien hy/sy nie gevind kan word nie, 'n ware afskrif te oorhandig aan..... 'n persoon wat blykbaar oor die ouderdom van 16 jaar is en wat blykbaar by die getuie se *WOONPLEK/WERKSPEL/BESIGHEIDS- PLEK woonagtig of werksaam is;

te.....
.....

Die aard en erns van hierdie dagvaarding is aan die ontvanger hiervan verduidelik.

Tyd..... Dag..... Maand Jaar.....

Plek *Handtekening van gemagtigde beampte*

..... *Handtekening van ontvanger* *Volle naam*

EXAMPLE:

..... *Volle naam*

..... *Hoedanigheid*

G.P.-S. 01/02

Summons No./Dagvaarding No.

J 175 (81/810713)

COPY: To be handed to accused/AFSKRIF: Moet aan beskuldigde oorhandig word.

Case No./Saak No. /

SUMMONS IN CRIMINAL CASE • DAGVAARDING IN STRAFSAK
Magistrate's Court **Landdroshof**

District Distrik		Regional division Streekafdeling	
Held at Gehou te	Court Hof	Date of trial Verhoordatum	

TO THE ACCUSED

- You are hereby summoned to appear in person before the above-mentioned court at 08:30 on the above-mentioned date and place in connection with the charge(s) of which the particulars is/are mentioned above and to remain in attendance.
- An admission of guilt fine of

.....
may be made on or before.....
to the Clerk of the above-mentioned Magistrate's Court or at any police station within the area of jurisdiction of the said Court.**AAN DIE BESKULDIGDE(S)**

- U word hierby gedagvaar om persoonlik om 08:30 op die bovermelde datum en plek voor die bovermelde hof te verskyn en aanwesig te bly insake die aanklag(te) waarvan die besonderhede hierbo verskyn.
- 'n Skulderkenningsboete ten bedrae van

.....
mag voor of op.....
aan die Klerk van bogenoemde Landdroshof of by enige polisie-stasie binne die regsgebied van voormelde Hof betaal word.

Name Naam			
Address Adres			
Gender Geslag	Occupation Beroep	Age Ouderdom	Id No. Id No.

Particulars of charge(s):
Besonderhede van aanklag(te):

Accused is/are guilty of the offence of Beskuldigde(s) is skuldig aan die misdryf van		
in that upon or about the deurdat op of omtrent die	day of dag van	in the year in die jaar
and at or near en te of naby		
the accused did wrongfully die beskuldigde(s) wederegtelek		

- Warning:** (i) Should any change in above-mentioned address take place before the proceedings are finally disposed of you are compelled to inform the official who served this summons upon you thereof.
(ii) Failure to comply with either the above-mentioned warning or this summons renders you liable to a fine or a term of imprisonment not exceeding three months.
- Should you decide to dispute the charge(s) against you, and you wish to make use of legal practitioner, you may, if you cannot afford a legal practitioner, apply for legal aid at the local Legal Aid Officer.

- Waarskuwing:** (i) U is verplig om die beampte wat hierdie dagvaarding op u bestel het van enige adresverandering in kennis te stel indien sodanige verandering geskied voordat die strafregtelike verrigtinge finaal afgehandel is.
(ii) Versuim om te voldoen aan bogenoemde waarskuwing of hierdie dagvaarding stel u bloot aan 'n boete of gevangenisstraf vir 'n tydperk van hoogstens drie maande.
- Indien u die aanklag(te) teen u betwis en u van 'n regspraktisyn wil gebruik maak, kan u, indien u nie self 'n regspraktisyn kan bekostig nie, aansoek om regshulp doen by die plaaslike Regshulpbeampte.

.....
Date stamp of issuing office
Datumstempel van kantoor van uitvoering

EXAMPLE:

J 175 (81/810713)

ADMISSION OF GUILT UNDER SECTION 57 OF ACT 51 OF 1977

I do hereby acknowledge that I am guilty of the offence(s) set out in this summons.

Signature

Identity number

The amount of R

deposited this day of

..... in the year.....

SKULDERKENNING INGEVOLGE ARTIKEL 57 VAN WET 51 VAN 1977

Ek erken hierby dat ek skuldig is aan die oortreding(s) in hierdie dagvaarding vervat.

Handtekening

Identiteitsnommer

Die bedrag van R

gedeponeer op hede die dag

van in die jaar.....

Licence/Receipt No.
Lisensie/Kwitansie No.

for the amount of
vir die bedrag van R.....

dated
gedateer

produced.
getoon.

IMPORTANT

1. Should you intend making use of the post the documents must be posted on a date which will be early enough to ensure that it will reach those formerly mentioned on or before the mentioned payment date.
2. Only cash, a money order, a postal order or a cheque guaranteed by a bank, will be accepted.
3. The summons, signed by you, must accompany the fine.

BELANGRIK

1. Indien u van die pos gebruik maak moet u die stukke pos op 'n datum wat vroeg genoeg is om te verseker dat dit die betrokkenes soos hiervoor gemeld voor of op die gemelde betalingsdatum bereik.
2. Slegs kontant, 'n poswissel, posorder of 'n tjek wat deur 'n bank gewaarborg is, sal aanvaar word.
3. Die dagvaarding, deur u onderteken, moet die boete vergesel.

EXAMPLE:

Case No./Saak No. /

SUMMONS IN CRIMINAL CASE • DAGVAARDING IN STRAFSAAK**Magistrate's Court****Landdroshof**

District Distrik		Regional division Streekafdeling	
Held at Gehou te	Court Hof	Date of trial Verhoordatum	

TO THE ACCUSED

1. You are hereby summoned to appear in person before the above-mentioned court at 08:30 on the above-mentioned date and place in connection with the charge(s) of which the particulars is/are mentioned above and to remain in attendance.

2. An admission of guilt fine of

.....
may be made on or before

To any **POLICE OFFICER** or **OTHER PERSON** empowered to serve a summons in criminal proceedings:

You are hereby commanded in the name of the State to serve the copy of this summons on the person(s) (hereinafter referred to as accused) of whom particulars appear hereunder as to summons him/her/them to appear in court and to remain in attendance in connection with the charge(s) of which the particulars is/are mentioned hereunder. Report to this Court what you have done thereon.

AAN DIE BESKULDIGDE(S)

1. U word hierby gedagvaar om persoonlik om 08:30 op die bovermelde datum en plek voor die bovermelde hof te verskyn en aanwesig te bly insake die aanklag(te) waarvan die besonderhede hierbo verskyn.

2. 'n Skulderkenningsboete ten bedrae van

.....
mag voor of op

.....gemaak word.

Aan enige **POLISIEBEAMPTTE** of **ANDER PERSOON** gemagtig om 'n dagvaarding in strafregtelike verrigtinge te beteken:

U word hierby in die naam van die Staat gelas om die afskrif van hierdie dagvaarding aan die persoon/persone [hieronder die beskuldigde(s) genoem] van wie besonderhede hieronder verskyn, te beteken ten einde hom/haar/hulle aan te sê om die hofverrigtinge by te woon en aanwesig te bly insake die aanklag(te) waarvan die besonderhede hieronder verskyn. U moet aan hierdie Hof verslag doen van wat u hieromtrent gedoen het.

Name Naam			
Address Adres			
Sex Geslag	Occupation Beroep	Age Ouderdom	Id No. Id No.

**Particulars of charge(s):
Besonderhede van aanklag(te):**

Accused is/are guilty of the offence of
Beskuldigde(s) is skuldig aan die misdryf van

.....
in that upon or about the day of in the year
deurdat op of omtrent die dag van in die jaar
and at or near
en te naby
the accused did wrongfully
die beskuldigde(s) wederregtelik

*Delete which is not applicable. If passing of sentence is declined and it is directed that the accused be prosecuted in the ordinary course, Skrap wat nie van toepassing is nie. Indien die oplegging van vonnis geweier word en gelas word dat die beskuldigde(s) op die gewone wyse a note to this effect should be endorsed accordingly under "O".
vervolg word, moet die feit dienoreenkomstig onder "A" geëndosseer word.

ADMISSION OF GUILT • SKULDERKENNING

*In terms of subsection (7) of section 57 of Act 51 of 1977, the accused is/are deemed to be convicted of the offence(s) set out above Kragtens subartikel (7) van artikel 57 van Wet 51 van 1977, word die beskuldigde(s) geag veroordeel te word weens die oortreding(s) and is sentenced to a fine of hierbo uiteengesit en word hy/sy/hulle gevonnis tot 'n boete van R.....

*Other
Ander

Date stamp
Datumstempel

.....
Magistrate/Landdros

EXAMPLE:

The following evidence was adduced in the presence and hearing of the accused then in his/her sound and sober senses
Die volgende getuienis is aangevoer in die teenwoordigheid en ten aanhoore van die beskuldigde toe by sy/haar volle verstand

EXAM

EXAMPLE:

2. Modes of addressing court officials

2.1 In a supreme court of appeal.....



2.2 In a supreme court

THE JUDGE

JUDGE, MY LORD OR YOUR
HONOUR



2.3 In a magistrate court including regional and district courts.....

THE MAGISTRATE

YOUR WORSHIP



2.4 In all courts.....

THE MAGISTRATE

THE PROSECUTOR



SIR

2.5 In all courts.....

THE MAGISTRATE

THE DEFENSE COUNCIL



SIR

2.6 In all courts.....

THE MAGISTRATE

THE DEFENSE COUNCIL



SIR

THE COURT ORDERLY, SCRIBE AND OTHER ROLE PLAYERS

TAKE NOTE**GENERAL INFO**

- In the South African Criminal Justice System, the burden of proof in criminal cases lies with the State. The State thus has to prove that an individual is guilty of an offence before he may be punished. The courts therefore follow the principle of: 'No punishment without culpability'.
- A second rule is that the authority to impose punishment lies with the State alone. This means that only the State in its jacket of the criminal courts may penalize or punish an individual.
- A third and very important rule is that only certain specified forms of human conduct are punishable. So for instance thoughts of slander and crime are not punishable until they change into real and visible misconduct. The courts follow the legal statement 'no crime without prohibition'.

3. Common tactics used by legal practitioners to upset witnesses

The ordinary person is to some extent afraid of giving evidence because it is such a serious and important matter and also because the right of legal practitioners to cross-examine a witness, sometimes result in a battle of nerves to test his credibility. Thus, with the ordinary person, there exists a certain amount of fear in the witness box, which may have serious results that may prejudice the course of justice. i.e.

- Leading of the witness to exaggerate his evidence. (Putting words in the mouth of the witness.)
- Make witnesses nervous so that they forget what they want to say.
- Make witnesses angry so as to lose their self-control when attacked.
- Make witnesses suppress valuable evidence.

It is of the greatest importance in the administration of justice that this fear should never exist in a officer. He should know:

- How to collect evidence.
- What legal knowledge is necessary in the giving of evidence
- How to act in the witness box
- How to meet different situations
- The duties of a witness

In order to ensure that he is always giving credible evidence, he must see to it that the under mentioned hints are always borne in mind and applied in every case, viz.:

- Knowledge of the subject on which evidence is to be given
- Knowledge of the legal aspects of giving evidence
- Behaviour in the witness box
- Behaviour in situations which may upset witnesses
- Duties of witnesses

4. Knowledge of the subject on which evidence is to be given

This knowledge is divided into:

Knowledge of Occurrences and Facts. The under mentioned points are essential for every witness:

- Proper observation of all circumstances concerning the case.
- Proper recording of evidence.
- Proper control to ensure that the necessary facts have been observed and noted.
- The assurance of the witness, shortly before the trial, that he still remembers all the facts and that he will be able to convey his knowledge to the court.
- A weak link in the evidence should be discussed with the prosecutor before the hearing of the case so that he may prepare himself and not only hear it for the first time when the evidence is given. This may cause confusion and benefit the defense.

Knowledge of Legal Aspects of the Offence which has been Committed. A officer can enter the witness box without fear when he knows exactly what happened as well as what is to be proved. Knowledge of the legal aspects include:

- The exceptions which make the act legal.
- Whether willfulness is to be proved or not.
- Whether proof of guilt rests with the state or the defense.
- Whether one witness is sufficient.

5. Knowledge of the legal aspects of giving evidence

It is the duty of the presiding Judge or Magistrate to administer the oath, (Act 32 of 1944 Section 112). It is unlawful for a officer to administer the oath himself and such arrogant behavior harms the dignity of the Court.

- It is the prerogative of a witness to give his evidence in the language, which he prefers, and the officer, as a witness, is no exception. A witness must insist on giving evidence in the language, which he prefers even if the defense is incapable of speaking that language. Do not attempt to "meet the court or the defense halfway" by speaking a language in which you are not conversant as in your own. By "meeting the defense halfway" in this manner, you enter into a sphere, which is strange to you and in which he may be an expert with the result that you may be tripped up by use of strange words. You are at home and at ease in the language of your choice and can express yourself better with regard to facts in your evidence. An interpreter must be used if the court and defense cannot understand the language, which you wish to use.
- The prosecutor is legally appointed to lead the evidence. He will introduce the witness to the court and lead the evidence.
- Knowledge of hearsay evidence and the admissibility thereof is essential.

6. Behavior in the witness box

- Always arrive clean and neat at court. Remember that the public sees you as a symbol of law and order. An untidy officer creates a weak impression and it is a sign of lack of interest.
- In order to make a favorable impression, a officer must, when entering the witness box, assume the attitude of a professional witness and show that he is proud to belong to a group who practices the profession of giving evidence. He must give his evidence in a professional and impartial manner. The officers of the court will be quick to observe that this officer knows what is expected of him and has prepared himself for the trial.
- Never lounge in the witness box but always maintain a neat posture.
- Always address the presiding officer.

7. Duties of witnesses

- Arrive well prepared at court.
- Uphold the dignity of the court by your behavior.
- Always tell the truth. By this is meant that you must tell everything you know openly, accurately and without doubt. Present evidence on only what you have seen or heard, in other words, only of what you have observed. Do not make any deductions; it is the duty of the court. Never give your opinion concerning facts. The presiding officer or the prosecutor will ask your opinion if it is necessary. Never exaggerate or add untruths to your statement with a view of obtaining a conviction. Cases are known where Judges and Magistrates have refused to accept the evidence of an officer because it was not trustworthy. The prosecutor was thus compelled not to lead evidence of the officer before such Judge and Magistrate again.
- In criminal cases, the onus to prove guilt lies with the State and it is not the accused to prove that he is not guilty. An honest and conscientious officer will not blame anybody when an accused is found not guilty, but will rather feel proud that he is living in a democratic country where a guilty person is found not guilty rather than that an innocent person is convicted.
- The investigating officer must ensure that his witnesses are at court and may not leave the court without the permission of the presiding officer. Should it be impossible for the investigating officer to be at court, the prosecutor must be informed so that arrangements can be made for him to give his evidence at a later stage. To be absent from court without permission not only leaves the prosecution in the dark, but also obstructs the administration of justice and causes friction between departments.
- Do not lose your temper when the accused pleats not guilty. Guard against a personal quarrel between yourself, the accused or his counsel. It is the prerogative of the accused to plead not guilty. Do not give false evidence to obtain a conviction when the accused pleats not guilty. The result of trial should not effect your evidence in any manner.
- Some legal practitioners are very friendly with the witnesses before the trial. In most cases this is only a trick to obtain information concerning the case by asking casual questions. Others again, discuss cases openly with witnesses. Witnesses must refuse to discuss cases with legal representatives and inform them that they will have the opportunity of cross-examination during the trial.
- Other witnesses must also be prepared, mentally and otherwise. Arrange for a consultation with the prosecutor and give them the opportunity to read the statements before giving evidence.

CRITICAL

Remember above all, that the evidence of the officer's witness may be the deciding factor, the way he gives his evidence, and his behavior in the witness box is of utmost importance.

8. General impression

The creating of a good impression in the courtroom is important. The officer will impress the court with:

- A lucid, thoroughly prepared case in which evidence is logically and straightforwardly presented.
- A neat and discipline appearance and behaviors in the witness-box.
- An attitude in the witness-box which characterizes objectivity and honesty.
- The credibility that will be attached to his evidence.

A sloppy and untidy appearance in the courtroom implies a don't-care attitude. This is not equated with professional conduct. A clear departmental policy is essential in order to ensure that the police witnesses will give evidence in uniform of formal civil dress. The witness- box must be approached with an attitude that is not too self-assured. An upright posture characterized respect and discipline, but the officer must also be relaxed and intellectually alert.

[illegible]

STUDY UNIT 3

PROCESS OF GIVING EVIDENCE

LEARNING OUTCOMES

On completion of this study unit the student will....



- ♦ Explain and demonstrate knowledge and understanding of the rules of evidence in the event of giving evidence in a court of law.
- ♦ Give verbal evidence in a simulated courtroom situation.
- ♦ Explain the legislative requirements for the presentation of verbal evidence in court, including hearsay evidence.
- ♦ Use techniques that can use when getting intimidated during cross examination.
- ♦ Use tactics that the officer can use when getting intimidated during cross examination.
- ♦ Use notes to provide evidence during a court case.

1. Giving evidence and trial procedures

The culmination of months, even years of hard work is the presentation of all available evidence to court. The eventual goal of every crime investigation is to identify the transgressor and bring him before court. The trial is therefore the end-product of the total investigation process.

The crime investigation is the central figure in the evidence-gathering process. The availability of evidence, and the manner in which it is presented in court, will depend on the quantity and quality of evidence which is obtained by him.



TAKE NOTE

EVIDENCE: In law, various things presented in court for the purpose of proving or disproving a question under inquiry. This Includes testimony, documents, photographs, maps and video tapes.



DEFINITION

Trial evidence consists of:

- The sworn testimony of witnesses, on both direct and cross-examination, regardless of who called the witness;
- The exhibits which have been received into evidence; and Any facts to which all the lawyers have agreed or stipulated.

Arguments and statements by lawyers are not evidence. The lawyers are not witnesses. What they say in their opening statements, closing arguments, and at other times is intended to help you interpret the evidence, but it is not evidence; Questions and objections by lawyers are not evidence. Attorneys have a duty to their clients to object when they believe a question is improper under the rules of evidence; Testimony that has been excluded or stricken, or that the jurors have been instructed to disregard, is not evidence and must not be considered.

From a judicial viewpoint evidence may be defined as ".....all relevant information which, if admissible in court, is presented." Evidence is given verbally by witness who appears viva voce, and in writing by means of such documents that are admissible. It is further complemented by presumptions, judicial notice and admissions. It all forms the proof from which a conclusion must be reached.

2. Rules of evidence



Can Security Officers Refuse to Give Evidence in Court?

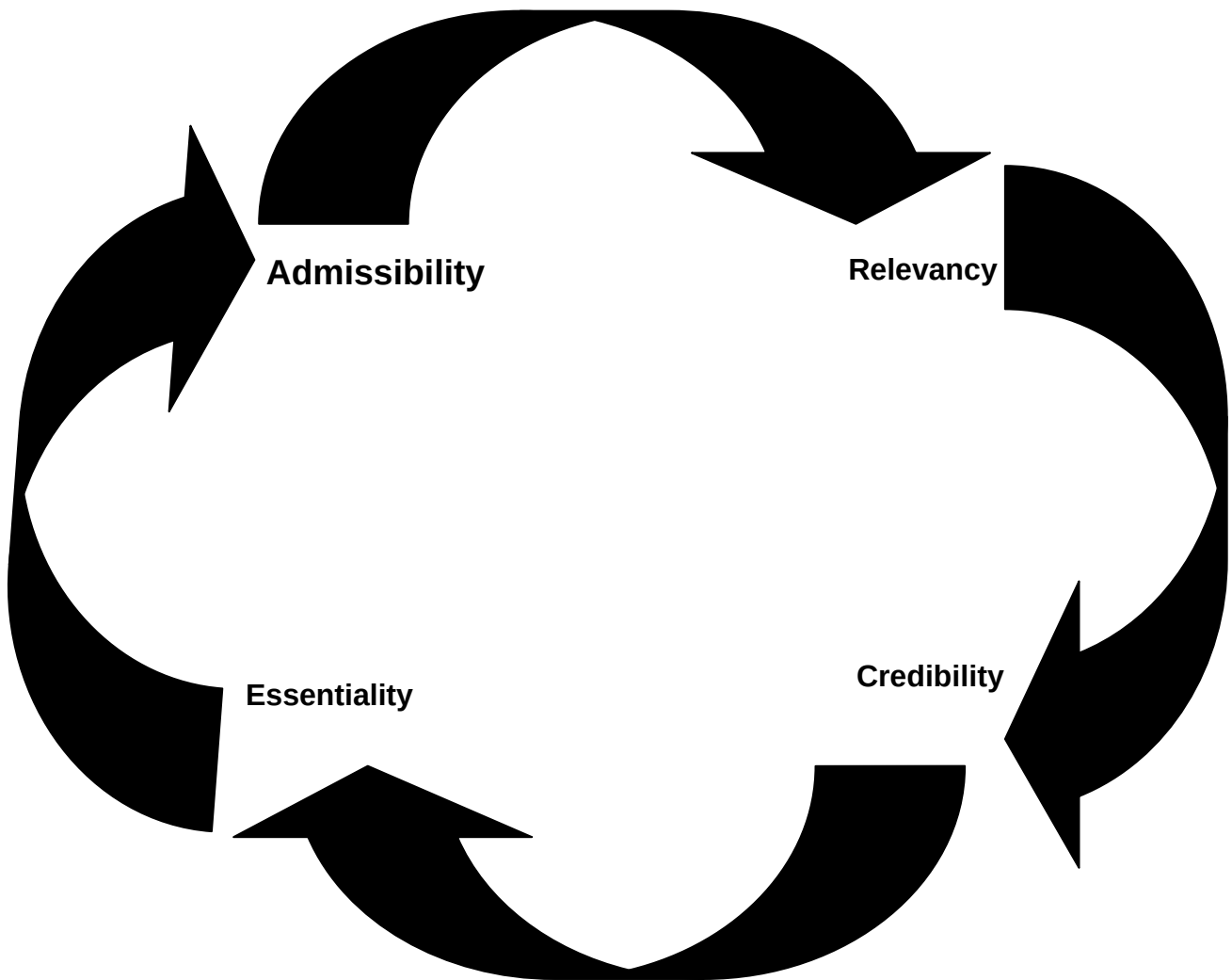
No security officer can refuse to give evidence in a court of law. If a security officer who can be legally compelled to make a statement during an investigation refuse to make such a statement or to make the information available to the police, the police can apply for a subpoena to force the person to disclose the information, on the basis of section 205 of the Criminal Procedure Act 51 of 1977.

According to the UNISA Centre for Accounting Studies this is done by submitting an affidavit that contains all the details of the crime and the investigation, the particulars of the witnesses, the evidence/information that is required and the value thereof for the investigation and prosecution, and the circumstances that led to the application being made for a subpoena. An indication must also be given as to why the information cannot be obtained from another witness. The affidavit and the case docket are then taken to the state prosecutor. If the state prosecutor agrees, he/she will arrange for such a subpoena to be issued.

2.1 Requirements for Giving Evidence

A security officer must note that the submission of evidence must meet certain requirements before a court will admit and accept it.

REQUIREMENTS FOR GIVING EVIDENCE



The Oxford Concise English Dictionary explains the above mentioned concepts as follows;

- **Admissibility** – allow ability as evidence;
- **Relevancy** – bearing on or having reference to the matter in hand;
- **Credibility** – (person or statement) believable or worthy of belief; and
- **Essentiality** – absolutely necessary (indispensable).

2.2 What is the Law of Evidence?

According to the UNISA Centre for Accounting Studies the basic principles is that all evidence should be used in proving a case;

The law of evidence provides only for basic tools to enable the court to get through all the difficult decisions that it has to make. At best it is an exact science, which has to attempt to govern thousands of different possibilities that are presented in every case. The importance of the law of evidence is beyond argument. It does not matter whether the case is a criminal or civil case. The law of evidence is always applicable, and arguments and decisions on the law of evidence will always have to be made. The rules governing evidence is particularly strict in criminal cases where facts have to be proven beyond reasonable doubt.



DEFINITION

The law of evidence may be defined as that field of law which regulates the proof of facts generally in a court of law.

From the above definition it is clear that “proof” is the central goal of the entire field of the law of evidence. Proof of a fact means that the court has received probative material with regard to such fact and has accepted such fact as being the truth for purposes of the specific case. Evidence of a fact is not yet proof of such fact: the court must still decide whether or not such fact has been proved. This involves a piece of evaluation. Evidence essentially consists of oral statements made in court under oath or affirmation or warning (oral evidence). But it also includes documents (documentary evidence) and objects (real evidence) produced and received in court.

2.3 Sources of the Law of Evidence

- Decided court cases creates binding law;
- Criminal Procedure Act 51 of 1977;
- Civil Proceedings Evidence Act 25 of 1965; and
- The Constitution of the Republic of South Africa Act 108 of 1996.

3. Distinction between information and evidence

- Information refers to knowledge that has been observed, heard and experienced and which could be of assistance to the officer.
- This information can directly or indirectly assist in the reconstruction of a crime scene, tracing of suspects, recovery of missing property or to identify witness.
- All information is not evidence.



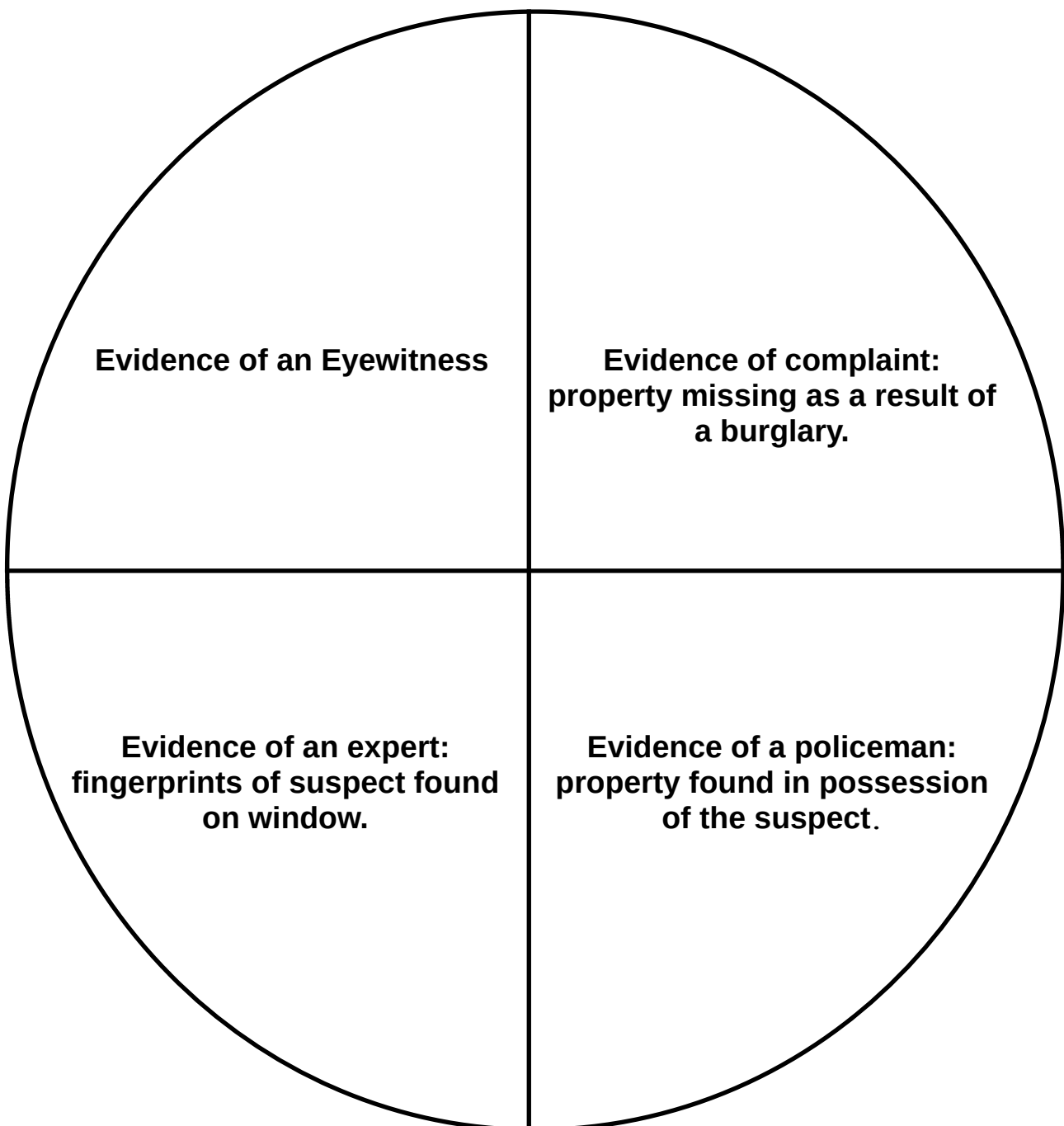
- Evidence, on the other hand, is valid information which, if admissible in court, strives to prove facts or issues. The officer will then have a goal, to search for information that will comply with the requirements of admissibility.

4. Evidence

4.1 Distinction between proof and evidence

Evidence and the furnishing of proof stand apart from each other but are related to each other within the total judicial process. Evidence includes individual facts which are presented in court for consideration. On the other hand, proof refers to the sum total of all the facts presented during evidence. Evidence is therefore the basis for, and medium whereby, proof is furnished.

The part played by the suspect is proved beyond all doubt by the total diagram below while sections only indicate essential evidence.



4.2 Admissibility of evidence

Evidence forms the basis for the building-up of a case. "In order to be presented in court, the evidence must be admissible, competent, relevant and material." A thorough knowledge of the law of evidence and the Criminal Procedure. Act is therefore necessary in order to be aware of the admissibility requirements of evidence. The gatherings of admissible evidence now ensure that the officer will play an indispensable role in the judicial process later.

5. Guidelines for giving verbal evidence

- The officer must not introduce himself and commence giving evidence, because it is the duty of the prosecutor to do this. He must only give his account of the facts without being led, at the request of the prosecutor. Whenever technical evidence is being given, the prosecutor will ask the questions and only those questions must be answered.
- Speak slowly, clearly and distinctly. Do not cover your mouth with your hand, swallow your words, nibble or chew. The Magistrate must take down your evidence in writing and the other persons concerned in the proceedings must be able to hear you distinctly. Whenever an interpreter is used, wait until he has interpreted the question and the Magistrate had taken down the question before answering.
- Always be serious. Always remember that you are a officer. A criminal trial is a serious matter and should never be conducted in a flippant manner. The guilt or innocence of an accused must be decided upon and it may even result in a death penalty.
- Never argue with the presiding officer, the accused, the advocate or lawyer for the defense or the public prosecutor, whatever the provocation may be. These officers have the right to cross-examine you. Subject yourself to the rules of criminal procedure, and you will rise in the estimation of those who hear your evidence.
- Give a direct answer whenever possible. Avoid answers like "I think so" or "I suppose so" etc. Never guess or exaggerate. Should you not be able to answer the question, say so. You will only make a fool of yourself by exaggerating. Never allow yourself to be forced to give a direct "Yes" or "No" answer when a qualifying answer would be necessary. You have the right to qualify your answer should this be necessary.
- Whenever you estimate a time or distance, say so. If you have fixed the time and distance, explain when and how you did this. This method will avoid unnecessary questions and doubt.
- Never ask assistance from the prosecutor on points on which you are giving evidence. This action will indicate that you have not prepared yourself properly.

6. Emotional behavior

- Never hesitate to think. Consider the question carefully and do not answer with undue haste before the question has been completed. If you do not understand the question, ask for it to be repeated. Answer only the question asked and do not give any further information. This may result in the unnecessary exposure of information and adverse criticism by the presiding officer, however, be careful not to withhold necessary facts.
- Remain calm under all circumstances. Never be sarcastic, rude, and impudent, lose your temper, or take up a pugnacious attitude. Although many members think this is the ideal behavior of a witness, it is not only reprehensible but also shows poor manners. Not only are you a poor witness but you also set a poor example to members of the public who are always watching you. Ignore attempts by the defense to make you angry and never be influenced by personal feelings. Give tactful and calm answers even if you are falsely blamed of having assaulted the accused.
- Remember all the facts of which you are to give evidence; arrange them in chronological order and make sure that you give evidence of all the relevant facts, at your disposal. It should not be necessary to "pull" important evidence out of you, either by the prosecutor, the defense or the presiding officer. Give your evidence impartially whether in favor of the accused or not. By this behavior you will rise in the estimation of the court and the public and your evidence will not be underestimated.

7. Behavior in situations which may upset the witness

- Whenever your memory fails, or when you are about to lose your temper, asking permission to consider your answer. Create the impression that you are not prepared to hamper justice by giving a rash answer.
- Legal practitioners use various techniques and sly methods to influence the witness with the intention of upsetting him. A witness, who is prepared and knows how to act, need have no fear of cross-examination.
- Under mentioned are a few hints as to how a witness can defend himself against a bombastic and aggressive legal practitioner, namely:
 - Sometimes a legal practitioner will falsely allege that you assaulted the accused, or have a personal grudge against him or used illegal methods. This is only done to anger you. Ignore those allegations, remain calm and give a composed answer stating the facts. Once you lose your temper, you are not a good witness and the defense has an advantage over you.

- Some legal practitioners shout at a witness and try to upset him in this manner. It is the duty of the court to stop this, but if the presiding officer does not do this, refuse to answer the question and request the court to order the defense not to shout at you. You are entitled to be addressed in the proper way and must also act in similar manner.
- Other legal practitioners try to "hypnotise" or "stare down" the witness. This is easily overcome by looking at and addressing the presiding official.
- Others again, try to force the witness to use a language to suit the defense. Always use the language of your choice and in which you can express yourself best.

8. Principles of effective testifying

The evidence of the officer is, just as is the case with other evidence, subject to his personal knowledge of the case - although he also has functional knowledge his evidence is limited to the facts that he discovered during the investigation, personal observations and relevant facts and information which others imparted to him. In order to be a competent and credible witness, the following principles should be followed whilst testifying:

- The officer must at all times conduct him in a professional manner. He must testify in a dignified and polite manner, concede when called for and answer questions clearly, honestly and accurately.
- After taking the oath, the officer is given his first opportunity to speak. Evidence must be given clearly and firmly. It must constantly be kept in mind that, what is being said, and the manner in which it is being said, will have an important impact on the outcomes of the trial.
- He must only speak when questions are asked and an answer must be limited to that implied by the question. Sometimes a witness is expected to give further information on a particular aspect and he must be mindful of this.
- The witness must speak clearly and audibly. The tone of voice must be normal, clear and audible to all parties. Try to avoid a nervous high-pitched tone of voice.
- The question and its implications must be clearly understood before the witness answers it. If there is any uncertainty about the question a request must be made for it to be repeated.
- The officer must always react honestly and sincerely to questions. Untruths, misconceptions and additions contaminate effective evidence. A lie undermines "..... The truth-finding process of the judicial process."
- When the witness is asked to describe investigation activities, it must be done chronologically. Clear and understandable terms must be used. Descriptions must be authentic and accurate. It can be further corroborated by photographs and sketches, etcetera.

- A witness must only supply answers to the specific question being asked. It is important not to expand unnecessarily on questions. When further information is required, further questions can be asked.

9. The ten personal "commandments" of testifying

- Never tell a lie. No case or witness is worth it.
- Do not allow the defense to put words in your mouth. You were there. Relate the events as you found them.
- Never argue. A witness never wins an argument in court.
- Never lose your self-control or your temper. No witness who has lost his temper is able to concentrate on what is important.
- When mistake is made during testimony, admit it. Do not try to disguise the mistake with lies.
- Do not use the stock phrase "I can't remember" unless you mean it honestly and sincerely.
- Do not rub your hands or fiddle in a nervous manner in the witness-box.
- Avoid unnecessary long delays before answering a question. On the other hand, do not react too quickly to questions before answers have been carefully considered.
- Do not start to provide answers before questions have been fully put. An over-hasty reaction may be an indication of a prejudiced attitude.
- A trial is serious. Do not laugh or talk about the facts or evidence that has already been given. Your actions could be misconstrued and could cause embarrassment.

10. Cross-examination of a witness

Many a witness has memories of a nightmare experience of cross-examination in a court. Cross-examination often leads to a witness viewing court procedures as almost a "torture". The continual bombardment of questions to which a witness is subjected after his initial testimony often robs such a witness of all his self-confidence. Why is it that something this witness saw and experienced is being doubted? The witness is expected to give detailed information about an incident that took place months or even years ago. It would appear to the witness as if the cross-examiner is asking questions that are apparently unrelated to the case, and nobody seems to care. It is sometimes not only the high-pitched tone of voice of the cross-examiner which is a source of irritation, but also his crouched bearing with his one hand on his hip and one foot on the chair.

While such a witness is experiencing these emotions, the cross-examiner usually smiles to himself because he has succeeded in interrupting the witness's line of thought. The cross-examiner realized just too well that a lack of concentration will expose the witness to misconceptions and that answer then tend to place facts out of context.



The earliest records example of a cross-examination in history is the story of Susanna and the Elders in an Old Testament Bible book.

Susanna was a beautiful woman and was watched by the Elders from a hiding place in the woody garden of her husbands, while she was busy having a bath. They made an indecent suggestion to her which she refused with contempt. Out of revenge she was falsely accused of alleged infidelity with another man and the people sentenced her to death.

A young man, Daniel, demanded to cross-examine the two witnesses for the prosecution first and they were called in separately. He asked the first Elder; "under which tree did you find her in sin?" He answered: "Under the mastic tree." The other Elder was brought in and to the same question he answered: "Under the elm tree." Daniel then said"

You two have lied." In this manner an innocent person was saved.

In the South African Criminal Procedure, Daniel would first have had to apply for re-opening for cross-examination, on appeal. Cross-examination is without doubt the single most important legal instrument whereby the truth can be tested. "..... it is beyond any doubt the greatest legal engine ever designed for the discovery of the truth.

Without it, verbal evidence would have had many pot-holes.

The unreliable witness would easily have been able to bend the truth and also escape the possibility of being charged for perjury. The right to confront a witness and to sift the truth from a confusion of emotions, prejudices and self-interest behind which it is sometimes hidden, has particular advantages for the fair judicial system. For that very reason, the aim of cross-examination is to place into perspective a one-sided or incomplete version, which is often the result of the initial testimony, by revealing qualifying aspects or even by illustrating that a witness is untrustworthy.

Cross examination must take place with reasonableness and politeness towards the witness.”..... I think it must be clear.....that witnesses who come into court, be they police witnesses or any other kind of witness, are entitled to the ordinary courtesy one extends to decent people. Witnessesare assisting the court in arriving at the truth. “Each witness must thus be treated with respect and dignity.

Furthermore, it is the duty of the court to protect a witness against the uncouth cross-examiner. The cross-examiner may well address an evasive witness harshly and even make sure of mockery and sarcasm, but may never cross the bounds of reasonableness, good taste and moderation.

It is normal for a witness to experience a certain degree of nervousness during cross-examination Tension can be eased by the following:

- Concentrate on the essence of the question.
- Wait until the question has been completely formulated before it is answered.
- Provide accurate answers on the grounds of that which was personally observed, smelt, felt, or heard.
- When a question is not clearly understood, do not hesitate to ask for it to be repeated.
- Do not hesitate to admit that you are unsure or unable to answer the question on the grounds of your own knowledge.

Cross-examination comprises of particular techniques, which each officer (witness) must be mindful of.

11. Tactics of cross-examination

Tactic of cross-examinations	Example	Purpose	Recommended Response
Rapid-fire questions	One question after another with little time to answer	To confuse the witness: an attempt to force inconsistent answers	Take time to consider the question; be deliberate in answering, ask to have the question repeated, remain calm
Friendly approach.	Very courteous, polite questions tend to take witness into confidence of cross-examination	To lull the witness into a false sense of security so that answers in favor of the defense will be given	Stay alert; bear in mind that the purpose of the defense is to discredit or diminish the effect of your testimony
Condescending approach	Benevolent approach, over sympathetic in question to the point of ridicule	To give the impression that the witness is inept, lacks confidence, or may not be reliable	Give firm, decisive answers; ask for the question to be repeated if improperly phrased
Aggressive approach	Cross-examiner stares witness right in the face; shouts "That is so, isn't it, officer?" This is followed up with rapid questions	To make witness angry enough to lose sense of logic and calmness	Stay calm, speak in a deliberate voice, giving prosecutor time to make appropriate objections
Mispronouncing witness name, using wrong rank	Name of witness is Gerber – Cross-examiner calls him Grobler	To draw the witness's attention to the error in pronunciation rather than to the question asked so that the witness will make inadvertent errors in testimony	Ignore the mis-pronunciation and concentrate on the question
Restrictive question	"Did you discuss this case with anyone?"	A "no" answer will place the witness in a position of denying having pretrial conference. A "yes" answer would be used to imply that the witness has been told how to testify	"I have discussed the case with the prosecuting attorney and other officers working on the case. No one has told me how to testify"

Suggestive (leading) questions	"was the murder weapon a knife"	To suggest an answer to the question in an attempt to confuse or to lead the witness	Concentrate carefully on the facts; disregard the suggestion, answer the question.
Demanding a "yes" or "no" answer	"Did you hit the accused with your fist?"	To prevent all pertinent and mitigating details from being considered by the jury	Explain the answer to the question ; if stopped by the cross-examiner demanding a "yes" or "no" answer, pause until the court instructs you to answer in your own words
Reversing	Witness answers "the exhibit was seized about meters from the body of the deceased." Cross-examiner says "you say the exhibit was 42 meters from the deceased?"	To confuse the witness and demonstrate the witness's lack of confidence	Listen intently whether cross-examiner repeats something you have said. Correct any errors.
Conflicting answers	"But Lieutenant Barkley just said" And so on"	To show inconsistency in the investigation. This tactic is normally used on measurements, times, amounts, etc.	Remain calm. Conflicting statements have a tendency to make a witness extremely nervous. Be guarded in your answers on measurements, amounts, times, etc. Unless you have exact knowledge, use the term "approximately". Refer to your notes just wait for the next question
Staring	After the has answered; cross-examiner just stares as though there were more to come	To have a long pause, that that one normally feels must be filled thus saying more than necessary. To provoke the witness into offering more than the question called for.	Just wait for the next question.

12. Use of investigation notes

Whilst giving evidence, the officer can make use of notes that he made during the investigation process. It should only be used when detail in respect of time, distance and numbers which often cannot be expected of him to remember is required. When the officer continually refers to his notes to be able to raise aspects that he is just unable to recall, his credibility may be doubted. It could also indicate that the officer neglected to prepare himself before testifying.

Before the officer (witness) may make use of his notes the following three requirements must be met:

- The notes must have been written by himself at the time or recorded by someone else on his instruction. He may not prepare a document long after the event to use as an aid while testifying. On the other hand, an expert such as a scientist, an engineer, architect or accountant may, with a view to litigation, prepare a report for use in the witness-box to refresh his memory, even if it is not the original notes that he made during his investigation.
- The crime investigation must be in possession of the original notes unless there is proof that they were destroyed or lost, in which case a copy may be used.
- The officer must be prepared to place the notes at the disposal of the court for perusal by any of the parties. It is only necessary to provide the relevant parts which he intends using.

The necessity for accurate and complete notes during the investigation process cannot be over-emphasized. Each officer must realize he is just not able to remember all the details which is required in court months or even years afterwards. When the officer makes use of these notes as an aid, it will depend on the manner in which they were recorded whether his credibility is increased or diminished.

[illegible]

STUDY UNIT 4

THE COURT PROCESS

LEARNING OUTCOMES

On completion of this study unit the student will....



- ♦ Show an understanding of the sequence of events during court proceedings.
- ♦ Communicate with the state prosecutor to confirm his involvement or role in the judicial process as a witness.

1. Court Proceedings

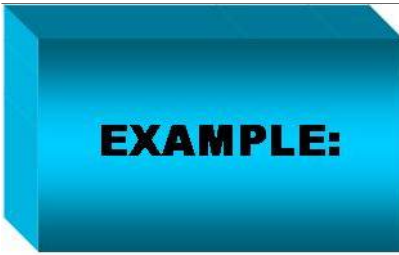
TAKE NOTE

In lower courts the state prosecutor will read the charge against the accused directly from a charge sheet.

In higher courts the state prosecutor will read the charge against the accused from an indictment. The accused will then be asked to plead.

1.1 Charge sheet or indictment

This is an official document used by state prosecutors. It contains the name of the accused, the charge against him, the date of the alleged crime, the place where it took place as well as any additional info such as the detail of possible victims. It is also commonly known as the J15 form. The figure after the J refers to the official document number in used by the Department of the Justice Department.



CHARHE SHEET (J15)

CASE	
NUMBER:	COUNT
NUMBER:	
ANNEXURE:	
THE STATE	
Versus	
.....(the accused)	
That the accused is/are guilty of the crime of HOUSEBREAKING WITH THE INTENT TO STEAL AND THEFT:	
That upon or about/during the period.....	
.....and at or near.....	
The district of RUSTENBURG, the accused did unlawfully and intentional and with the intent to steal, break and enter.....	
there situate ofand	
did unlawfully steal.....	
.....	
Property or in the lawful possession of the said.....	
.....	

2. The Trail

According to the South African judicial system, the aim of a criminal trail is to ensure that in all respects justice will be done. Here the guilt or innocence of an accused is proved.

2.1 Course of the trail

The presiding official is in charge of the course of the trail. All parties, the court personnel and the public must, promptly comply with all orders given by this official during the trail, in order that the trail runs smoothly. A deliberate disregard of orders can lead to a summary sentence for contempt of court.

2.2 Attendance of the accused

At the commencement of the trail the accused appears personally or is escorted into the courtroom. Although the court has discretion to allow the accused to take up another suitable position, he as a rule stands in the dock.

After the presiding official (magistrate or judge) has been seated in court, the case is called by the prosecutor in the lower courts or by the registrar in Supreme Court cases. By “calling the case” is meant a formal announcement by the registrar or prosecutors where the following is said: “ I call the case of the State against ...so-and-so.”

Once the case has been called, the charge(s) are put to the accused that is to say, read out loud to him. In the lower courts the prosecutor puts the charge(s). At supreme court trails the charge(s) are put to the accused by the registrar (judges clerk), If the accused does not understand or is not conversant with the language in which the charge sheet or indictment is worded, the charge(s) are explained to him/them by the presiding official or interpreted in his/ their languages. Where a number of accused are charged with the same crime but different charges, then each separate charge must be read to each accused. The presiding official must ensure that each accused knows exactly what he is pleading to. After the charge(s) have been put, the accused is asked by the court to plead to the charge(s).

2.3 Plead

In the case of trivial offences the accused can be convicted merely on his plea of guilty. In this case the prosecution need not present any evidence. If the accused pleads guilty to a more serious offence, the court must, before the accused is convicted satisfy itself that the accused is guilty as he has intimated in his plea.

In order to eliminate unnecessary evidence, and to determine exactly what the issues of dispute are between the state and the accused, the court may put certain questions to the accused after he has pleaded.

2.4 The case for the State

After the plead procedures have been disposed of, it is the duty of the prosecutor to present the first evidence in court. This is done because there is a continuous responsibility on the State to prove the guilt of the accused beyond all reasonable doubt.

Witnesses are called to the witness box one by one where they are questioned. Except where a law stipulates otherwise all evidence is given verbally. An interpreter must be appointed if the accused does not understand the language of the witness.

2.5 Examination-in-chief of state witnesses

After a state witness has taken the oath or affirmation or has been warned, the prosecutor questions him. The questioning of a state witness by the prosecutor is known as the examination-in-chief of the witness. It is the duty of the prosecutor to assist each state witness during the examination-in-chief in order that the evidence is presented to the court logically and coherently. No leading questions may be put to a witness during the examination-in-chief, except questions in respect of formal aspects that are not in issue, and introductory questions that are asked to get the witness started.

The right to cross-examination arises after a witness has delivered his evidence-in-chief. Should the court adjourn while a state witness is under cross-examination, it would create an irregularity if the prosecutor speaks to the said witness before the cross-examination of that witness has been completed.

2.6 Re-examination of state witnesses

After a state witness has been cross-examined by the defence, an opportunity is afforded to the state to re-examine the witness. The questions that may be put to the witness have the express aim of rectifying any misconception that may have arisen from the cross-examination. Also, the version of a witness which is incomplete after cross-examination, may be complemented and put in the correct perspective before the court by means of re-examination.

2.7 Questions by the court to clarify unclear issues

The court (presiding official) may at any time during the chief-, cross-, or re-examination of a witness (irrespective whether a state or defence witness) intervene and put questions to the particular witness.

When the prosecutor has placed all the evidence for the state before the court, he closed the Closing of the state case. He does this by means of an informal announcement which in practice is as follows: "That is the case for the State" or "I close the State case"

2.8 Prosecution and defense may address the court at the conclusion of the evidence

After all the evidence has been presented, the prosecuted, the prosecutor may address the court and thereafter the accused may address the court.

2.9 The case for the defence

If the accused is not acquitted at the close of the state case, the court must ask him whether he intends presenting evidence on behalf of his defense. If he answers in the affirmative he may, just as in the case of the prosecutor at the state case, address the court in order to enlighten it, without comment as to the evidence that he wishes to present on behalf of the defense.

If the accused is to testify on behalf of his defense, he is called as a witness before any other witness for the defense, except where the court, on the strength of reasonable grounds, allows otherwise.

An accused who chooses to testify need not necessarily testify from the witness-box. Although it is the practice, and also desirable that he should give his evidence from the witness box, there is nothing to prevent him from testifying under oath from the dock. When the accused has testified of his own free will, he may question any other witness for the defense.

Defense witnesses are subject to cross-examination by the accused and re-examination by prosecutor in the same way as state witnesses by the prosecutor during the examination-in-chief.

After the accused has presented the case for the defense, he closes his case.

2.10 Summons and recall of witnesses by the court for questioning

The competence of the court to recall a witness for further questioning is discretionary. The discretion of the court to recall witnesses for questioning becomes a duty if it appears to the court that the further evidence of the particular witness is essential for the just adjudication of the case. A witness, who is summoned in this manner by the court to testify, is a witness of the court. See example of summons underneath.

2.11 Judgments

After the court has heard the speeches (also known as addresses or arguments) of the prosecutor and the accused or his counsel the court must deliver judgment. The court may, where it does not deliver judgment *ex tempore*, reserve its judgment, that is to say that the court may take time to prepare its judgment.

2.12 Sentence

If the accused is found guilty, the accused may present evidence in mitigation of sentence to the court. Here-after the sentence is passed. The ultimate test for the crime investigator rests in the presentation of his investigation findings in court. The manner in which the officer prepared his findings, the impression that he made on the court by his conduct, the particular manner in which he gives the evidence, and the value that the court attaches to his evidence, is the sum total of his expertise and ability. It is the reward for his labour in the process of adducing evidence.

3. Role of the crime investigation in the judicial process

A crime investigation may solve a case only by means of knowledge which he already possesses. In other cases he utilizes information from other sources such as victims, suspects, witnesses and physical clues, for example. The preparation of a case for the trial does not only mean mere organization, but a systematic approach in order to be able to present all information gathered during the investigation process to the State Prosecutor for evaluation and presentation, in a chronological and orderly manner.

Success can only be gained in court if the investigation is thoroughly prepared and evidence is effectively presented. "Marshalling the evidence, by complete, early and skillful investigation is recommended procedure. The essentiality of preparing is emphasized by the following factors:

- Evidence must be presented in chronological sequence in proving the guilt of the accused.
- Gathered evidence is presented in court by third parties.
- The investigator has information at his disposal that the court does not.
- The eventual test for the investigator's finding is in the presentation thereof in court"..... no matter how brilliant the investigator He cannot expect to advance if he fails in the courtroom".
- The degree to which a case is fully and thoroughly investigated, and the shortcomings thereof, will be revealed in court; and
- Preparation for the trial comprises of operational preparation, preparation of witnesses, co-ordination with the prosecutor, preparation of the crime investigator's evidence and support of the State Prosecutor during the trial.

4. Operational preparation

At the commencement of the investigation process, the officer must already foresee the possibility that the case will end up in court. The responsibility that must already be fulfilled on the crime scene to ensure that evidence is identified, witness are traced and questioned, the scene is already reconstructed, and detailed information such as time, place and distance, are a prerequisite for success in court later. "A case well investigated is a case well prepared." No officer can hope to round off an investigation successfully without proper reporting. Investigation reporting is indeed the starting- and finishing point of all actions taken in a case. The making of notes from the beginning to the end of an investigation is of the greater importance. Investigation notes, witness statements and follow-up reports make a continuous recording of events, information and facts possible. In the light of the gathered information it must be shown that the act was a human act and, measured against the evidential requirements, the particular crime does boil down to unlawfulness and that a particular person, or persons are responsible for it.

Officer must not consider the early completion of especially routine tasks as being inferior. The taking of photographs, applying for previous convictions and completion of documentation is not only an integral part of the investigation process, but is firstly important in order that justice may triumph in court, and secondly to maintain a crime information bank.

The operational preparation phase is concluded with the submission of an investigation report to the State Prosecutor and a pre-trial discussion of it with the prosecutor. The contents of the investigation report must be an example of thoroughness. The accuracy and completeness of the title page, statements of witnesses, list of exhibits and other underdeveloped clues and information, must provide answers to the questions why, who, when, how, what and where. Further questions by the State Prosecutor at this stage usually points to the incompleteness of the report. All the answers to the question formula must determine exactly what happened and who is responsible, that is to say, an effort to find the complete truth concerning the events.

5. Co-coordinating with the State Prosecutor.

Rapport between the officer and the State Prosecutor before the trial is essential. Problems must be discussed, advice given and knowledge exchanged. The officer must remember that it is firstly, the product of his labour that will be presented by the prosecutor and secondly, that it is his product that can mean the difference between freedom and imprisonment or even the right to live of an accused.

Therefore, the pre-trial discussions with the State Prosecutor must be primarily geared to ensure that all possible evidence has been gathered and all the evidential requirements have been complied with, in order that the accused may be confronted with all possible admissible and relevant facts which will prove his part in the crime beyond all doubt.

A discussion between the State Prosecutor and the officer promotes mutual understanding and insight for each other's problems. Both have a mutual goal, namely to present all the true facts of a committed crime to the court. An early basis for teamwork will ensure that the presentation of a case will not be viewed as just another statistical case that must be disposed of. The prosecutor must become involved in the investigation at an early stage. His interest must be stimulated. It must always be remembered that it is the State Prosecutor that must present the total picture to the court and it is the product of the officer that should enable him to do so. A spontaneous relationship between a officer and a State prosecutor in which deficiencies, problems and mistakes that are made can be openly discussed, is an absolute prerequisite for a successful trial.

6. Preparation of witness

A trial may take place months, even years after an event occurred. Detailed information concerning the what, how, when, where and who of a committed situation may possibly be lost. Officers bear the responsibility of having to conduct interviews with all witness before the trial. Most people have a natural opposition to testifying in public. Nervousness whilst giving evidence is normal but may be avoided. The crime investigator must inform witnesses about the following:

- The time and juncture when he/she will testify.
- That the particular evidence must only reveal the truth
- The course of the court proceedings. The aim and procedure of re-and cross-examination must be explained.
- The basic rules of evidence

The witness, who is emotionally prepared, can to a large extent determine how his/her evidence will be received and considered. The memory of a witness may be refreshed by reading his statement to him. It is important to test the attitude of the witness at the same time. Is the witness open-hearted, recalcitrant or hesitant? Was the description of facts and answers to questions inconsistent and full of discrepancies? The important role of witnesses in the judicial process must now be pointed out. Witnesses must understand that facts must be given clearly, uncomplicated and honestly. The crime investigator may never be prescriptive in respect of that which the witness must testify, except that it is expected of him to recite the truth as accurately as possible.

7. Support of the officer during the trial

The presence of a officer in court on the date of trial is an indication of the seriousness and pride with which he approached the investigation. Unforeseen circumstances often develop during the trial which renders the assistance of the officer essential. The accused may for the first time at the trial advance a defense based on an alibi. Speedy and accurate evidence is thus required in order to refute the defense or to confirm the truth of it. Other responsibilities that the officer has on the date of trial are, among others, the following:

- He must ensure that all witnesses are present.
- He must ensure that all the information requested by the prosecutor beforehand is available.
- He must ensure that the accused is present.
- He must ensure that exhibits for presentation in court are available.
- He must inform the prosecutor that everything is ready for the commencement of the trial.

8. Preparation of the officer's evidence

The primary purpose of the officer in court is to testify about the facts and the manner in which he discovered them: accurately, complete and clearly. The appearance and actions of the officer are usually of decisive importance and for this reason it is essential that there should be no doubt in respect of the credibility of his evidence.

The officer will perform many tasks before he must one day give evidence in court. Notwithstanding this, the officer must prepare himself properly for his testimony in the trial which could possibly take place months or even years after the event, during which time many other investigations may have taken place:

- It is important that he must be fully conversant with all the facts and how they must be presented.
- He must ensure that adequate facts have been gathered to corroborate his evidence.
- In order to refresh his memory, he must consult all written statements, notes, photographs, sketches and any other recorded information.
- A thorough knowledge of especially the different cross-examination techniques, the aim thereof and the reaction thereto, is indispensable for effective testifying.

9. Testifying by the officer

The eventual test for the findings of the officer is in court. The competency of the investigator is demonstrated in the witness stand by the manner in which he testifies as well as by a recitation of his professional qualification.

The degree to which a case is fully and effectively investigated and possible deficiencies therein is revealed in court. In the witness-box, the expertise and credibility of the officer, or possibly his poor judgments or illogical reasoning is revealed.

[illegible]

STUDY UNIT 5

PROVIDING FEEDBACK

LEARNING OUTCOMES

On completion of this study unit the student will....



- Use the recording system, which may assist with the notification of the company and client as to the outcome of the criminal proceedings.

1. Introduction

The officers who testify in a criminal court case cannot ever present evidence in isolation as there are various other individuals or bodies that will require knowing the final outcome or result of a trial.

The following information may appear to be procedural and rightly so, as the objective is to benefit society and in this case the employer, the client, and insurance company and in some case the victim.

2. Information required for feedback

For statistical and insurance purposes the employer will want to know exactly what the outcome of a judicial hearing was.

A positive outcome, where an accused was found guilty could mean the difference between the employer having to pay compensation to the client, or the insurance company having to pay the employer or client. Where the outcome is negative, i.e. the accused is acquitted; the customer or victim may bring a claim against the security company as employer.

The duty in this case would be for the officer to inform the employer of the outcome of the court case.

The employee officer could give feedback to his own company in the **manner prescribed by the company**. The more usual methods would be to make an entry of the final results of a court case in the pocket book, detailing the outcome and results.

Another method would be to fill in the details of the court results in the investigation diary contained within the investigation docket. This would however only be applicable if the officer witness is also the person investigating the case on behalf of the company or client, and then conducting the investigation in similar fashion to a private investigator.

A third method could be a letter or memorandum to the employer or the client detailing the charge against the accused, the applicable reference numbers and the results obtained by court verdict. For practical purposes, the officer may use the following form or similar document when informing the company.

[illegible]

WORDS/ACRONYMS	EXPLANATION OF ACRONYMS
ASSESSMENT	“A structured process of gathering evidence and making judgments about an individual’s performance in relation to registered national standards and qualifications”
ASSESSMENT CRITERIA	It describe the evidence that is needed to show that the learner has demonstrated the outcome correctly. A list of evidence to be supplied by the candidate as proof of his / her ability to integrate all of the competencies listed earlier in the standard.
COMPETENCE	Competence is the ability to do certain things in a range of different environments with knowledge and understanding about what is being done and the effect this has on others. It includes <u>Knowledge, skills, attitudes, values and ethics.</u>
CREDIT	Each unit standard is worth a number of credits which gives an indication of the size and scope of the unit standard, the standard is worth. (1 credit = 10 notional hours of learning)
CRITICAL CROSSFIELD OUTCOMES	critical cross field outcomes is to direct educational activities towards development of the learners within a social and economic environment.
EMBEDDED KNOWLEDGE	Body of theory essential for understanding and applying the standard. Principles, methods and techniques that would underpin good practice of this unit standard.
EVIDENCE	Evidence is a set of information or observations that provides proof of the learner’s competence.
FORMATIVE ASSESSMENT	Aims to assist the learner to identify any knowledge/skills gaps when demonstrating his/her current competence. Diagnostic assessment supports learning and progress of the learner.
INTEGRATED ASSESSMENT	Integrated assessment refers to: • assessing a number of outcomes together • assessing a number of assessment criteria together • assessing a number of unit standards together • using a combination of assessment methods and instruments for an outcome/s • collecting naturally occurring evidence in the workplace • Acquiring evidence from other sources such as supervisor’s reports, testimonials, portfolio of work previously done, logbooks, journals etc.
LEARNING ASSUMED TO BE IN PLACE	Building blocks (knowledge, skill and understanding) assumed to be in place
LEARNING PROGRAM	A “learning program is a set of learning activities in which the learner will be involved in working towards the achievement of one or more outcomes.
LEVEL	Each unit standard is registered on the NQF at a particular level based on the complexity of the outcomes and stringency of the standards.
NQF	National Qualifications Framework
RANGE STATEMENTS	The range statements indicate detailed requirements of the assessment criteria.

RE-ASSESSMENT	• The same method and instrument may be used, but, the task and materials should be different • The task and materials should, however, be of the same complexity and level as the previous ones. • In case the methods and instruments are changed it must be ensured that they are appropriate for the outcomes specified.
RPL ASSESSMENT	RPL is a way of recognizing what individuals already know and can do. The basic premise underlying it is that people, especially mature adults, learn many things inside and outside the formal structures of education and training and that irrespective of where, how and when learning was acquired, subject to assessment, it can be worthy of recognition and credit.
RPL	Recognition of prior learning
SASSETA	Safety & security sector education and training authority.
SAQA	SOUTH AFRICAN QUALIFICATION AUTHORITY
SPECIFIC OUTCOMES	An outcome is a statement that describes the required competency that must be demonstrated by the learner on successful completion of a training intervention. Key performance areas in the standard are given, the focus is <i>not</i> only on current competence, but also on future competence in this standard.
SUMMATIVE ASSESSMENT	Assessment used to record the level of competence achieved by a learner over a period of time, e.g. at the end of a program, term or year.
QUALIFICATIONS	Represent a planned combination of learning outcomes which has a defined purpose and intended to provide learners with applied competence and a basis for further learning
UNIT STANDARDS	the “building blocks” of qualifications. All qualifications are plotted on the National Qualifications Framework (NQF). “A statement of the outcomes that the learner must achieve to earn credit. Standards are nationally agreed and internationally comparable.”

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Mackenzie, G. Mc Loughlin, T. Twiss, G. 1983.***The Security Handbook***. Printpak (Cape) Ltd.

Redpath, J. 2003.***The Courts in South Africa***. Department of Community Safety (Western Cape). Available: http://www.capegateway.gov.za/afr/pubs/public_info/C/32303/E#1

University of South Africa. 2005. ***Programme in Forensic and Investigative Auditing***. Centre for Accounting Studies.

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Give evidence in court

SAQA US ID		UNIT STANDARD TITLE	
244182		Give evidence in court	
ORIGINATOR		REGISTERING PROVIDER	
SGB Security			
FIELD		SUBFIELD	
Field 08 - Law, Military Science and Security		Safety in Society	
ABET BAND	UNIT STANDARD TYPE	NQF LEVEL	CREDITS
Undefined	Regular	Level 3	4
REGISTRATION STATUS	REGISTRATION START DATE	REGISTRATION END DATE	SAQA DECISION NUMBER
Registered	2007-11-28	2010-11-28	SAQA 0474/07
LAST DATE FOR ENROLMENT		LAST DATE FOR ACHIEVEMENT	
2011-11-28		2014-11-28	

PURPOSE OF THE UNIT STANDARD

This unit standard will lead learners towards achieving knowledge, skills and attitudes that would enable them to prepare for, attend, and give evidence in a court of law. Learners will be able to understand court structures, functions and procedures and will also be able to describe the functions, roles and responsibilities of court personnel. This unit standard will enable learners to demonstrate an elementary understanding of law of evidence. This competency relates to the learners ability to differentiate between factual and circumstantial evidence that will enable them to review their presentations in court.

A person credited with this unit standard will be able to:

- Prepare to give evidence in court.
- Give evidence in court of law in a given scenario.
- Debrief the organisation on the presentation of evidence in the court of law in a way that will contribute towards future improvement.

LEARNING ASSUMED TO BE IN PLACE AND RECOGNITION OF PRIOR LEARNING

- Communication at NQF Level 2 or equivalent.
- Mathematical literacy at NQF Level 2 or equivalent.

UNIT STANDARD RANGE

This unit standard is for personnel working in a any environment who has to attend and give evidence in a court of law in order to solve court cases. Learners credited with this unit standard will be able to present themselves confidently and unambiguously to a court of law and give reliable, truthful and honest evidence in order to contribute towards the resolving of court cases. The learner will also be able to understand and adhere to court procedures, protocol, functions and structures within a court.

UNIT STANDARD OUTCOME HEADER

N/A

Specific Outcomes and Assessment Criteria:**SPECIFIC OUTCOME 1**

Prepare to give evidence in court.

OUTCOME RANGE

Prepare to give evidence in court may include but is not limited to techniques to counter the abuse and/or intimidation of witnesses.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

The purpose of preparing oneself to present evidence is described in terms of its possible impact on the case.

ASSESSMENT CRITERION RANGE

Evidence to reflect statements taken from, pocket book, observation records, personal experiences and observations.

ASSESSMENT CRITERION 2

Factual information is distinguished from circumstantial information regarding a specified case.

ASSESSMENT CRITERION 3

Rules of evidence are described in terms of their relevance when giving evidence in a court.

ASSESSMENT CRITERION RANGE

Rules of evidence may include but are not limited to the rules of evidence in terms of the Criminal Procedures Act 51 of 1977 as amended and court rules.

ASSESSMENT CRITERION 4

Court personnel are described in terms of their roles and responsibilities.

ASSESSMENT CRITERION RANGE

Court personnel may include but are not limited to State Prosecutor and investigation officers, interpreters, presiding officer, audience, witnesses, attorneys, clerk of the court, court orderly, police escort.

ASSESSMENT CRITERION 5

Court procedures are described in terms of their effect on accepted court protocol.

ASSESSMENT CRITERION RANGE

Court protocol may refer to the manner of addressing the presiding officer and other role players and giving evidence.

ASSESSMENT CRITERION 6

Court structures are described in terms of their functions.

SPECIFIC OUTCOME 2

Present evidence in court.

OUTCOME RANGE

This outcome may be assessed in a given situation.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

Evidence to be presented is structured in a logical sequence based on facts.

ASSESSMENT CRITERION 2

Evidence to be presented is assessed to minimise ambiguities.

ASSESSMENT CRITERION 3

Evidence is provided in a given situation.

ASSESSMENT CRITERION RANGE

Provision of evidence must adhere to court procedures, functions and protocol.

SPECIFIC OUTCOME 3

Debrief role-players on presented evidence.

OUTCOME RANGE

Role-players include but not limited to organisation that he represents and clients.

ASSESSMENT CRITERIA**ASSESSMENT CRITERION 1**

The purpose of debriefing is described in order to inform future presentations of evidence.

ASSESSMENT CRITERION 2

Problems experienced while giving evidence are identified in order to improve future participation.

ASSESSMENT CRITERION RANGE

Problems experienced may include but is not limited to personal difficulties experienced before and during the court case.

UNIT STANDARD ACCREDITATION AND MODERATION OPTIONS

- An individual wishing to be assessed (including through RPL) against this unit standard may apply to an assessment agency, assessor or provider institution accredited by the relevant ETQA.
- Anyone assessing a learner against this unit standard must be registered as an assessor with the relevant ETQA.
- Any institution offering learning that will enable achievement of this unit standard or assessing this unit standard must be accredited as a provider with the relevant ETQA.
- Moderation of assessment will be conducted by the relevant ETQA at its discretion.

UNIT STANDARD ESSENTIAL EMBEDDED KNOWLEDGE

Refer to the specific outcomes and the assessment criteria contained in this unit standard and specifically to:

- Structures of the South African courts.
- Legal aspects of giving evidence.
- Court protocol.
- Review procedure.
- Case docket: facts and circumstances of the case.
- The concept of hearsay evidence.
- The concepts of objective and reliable evidence.
- Concepts of reasonable doubt and probabilities.

UNIT STANDARD DEVELOPMENTAL OUTCOME

N/A

UNIT STANDARD LINKAGES

N/A

Critical Cross-field Outcomes (CCFO):**UNIT STANDARD CCFO IDENTIFYING**

Identify and solve problems related to the evaluation of own performance in giving evidence in court for future improvement.

UNIT STANDARD CCFO WORKING

Work effectively with others involved in the giving of evidence in a court.

UNIT STANDARD CCFO ORGANISING

Organise oneself and one's activities in such a way as to have all and any evidence available and accurate for giving evidence in court.

UNIT STANDARD CCFO COLLECTING

Collect, analyse, organise and critically evaluate information related to the presentation of evidence in a court of law, in a logical sequence and appropriate to the law of evidence principles so that these are accurately interpreted into application performance standards.

UNIT STANDARD CCFO COMMUNICATING

Communicate effectively when giving evidence in court.

UNIT STANDARD CCFO DEMONSTRATING

Understand the world as a set of related systems where in that court procedures are adhered to in accordance with the criminal justice system.

UNIT STANDARD CCFO CONTRIBUTING

In order to contribute to the full personal development of each learner and the social and economic development of society at large, it must be the intention underlying any programme of learning to make an individual aware of the importance of: being culturally and aesthetically sensitive across a range of social contexts when giving evidence in court.

UNIT STANDARD ASSESSOR CRITERIA

N/A

UNIT STANDARD NOTES

This unit standard replaces unit standard 11498, "Attend and give evidence in court", Level 3, 6 credits.

Supplementary Information:

Specified Requirements:

Specified requirements include legal and legislative specific requirements and are contained in one or more of the following documents:

- Legal:
 - > Applicable section of the Criminal Procedures Act 51 of 1977.
 - > Relevant applicable legislation specific to the evidence given.
- Context Specific:
 - > Training provider user manuals.
 - > Specifications, agreements, policies and procedures.
- Resources required for Assessment:
 - > Reconstruction of a courtroom.
 - > Relevant role players for court scenario.
 - > Necessary administrative and stationary issue.
 - > Criterion referenced assessment instructions/tools.
 - > A suitable venue: classroom.

QUALIFICATIONS UTILISING THIS UNIT STANDARD:

	ID	QUALIFICATION TITLE	LEVEL	STATUS	END DATE
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